Buyer Packet

Table of Contents

Buyer:

Unit Model:

Serial #:

Documents Signed by Buyer

- **1.1 Declaration of Trust** – Establishes the Trust and the Buyer as Settlor, Co-Trustee, and Beneficiary; Parent LLC as Co-Trustee.
- **1.2 Grantor Contribution Acknowledgement** – Makes clear the amount and purpose of the Buyer's contribution to the Trust, and the Trustee acknowledges receipt of the funds.
- **2.3 Special Purpose Manager Appointment** – For ease of administration, this appoints Buyer as a special purpose manager to make it easier for the Series to apply for an EIN with the IRS in a timely manner.
- **5 Buyer Disclosure & Acknowledgment** – Explains risks, at-risk rules, recapture/CODI, and confirms Buyer's understanding.
- **6 Funds Flow Statement & Buyer Acknowledgment** – Shows total wire payment and allocation.

Documents Provided for Buyer's Information (Signed by Other Parties)

- **2.1 Series Designation** – Creates new series per Parent Operating Agreement - A Delaware Protected Series Limited Liability Company (Executed by Parent LLC).
- **2.2 Series Contribution Agreement** – Confirms the Trust's contribution into the Series LLC (executed by Co-Trustees and Parent LLC).
- **3.1 BoxHouse Purchase Agreement** – Confirms the purchase of a BoxHouse.
- **3.2 Promissory Note** – The note between BoxHouse and the Series.
- **3.3 Security Agreement** – Grants lender security interest in the BoxHouse.

- **4 Debt Guarantee Agreement** – Confirms the Trust's guarantee of the Series LLC's obligations (executed by Co-Trustees as Guarantor and BoxHouse as Lender).

Informational Documents (No signatures)

- **This Table of Contents** – Lists all agreements and documents included in your packet for transparency and clarity around the transaction.
- **Grantor Trust Explainer** – A plain English explainer document about the Trust and its purpose in the overall structure of the BoxHouse purchase transaction.
- **Summary of Downstream Agreements** – Overview of other agreements handled by Trust/Series and Manager.

Summary of Downstream Agreements

(For informational purposes only. Not for signature.)

Series Operating Documents

Your Trust has contributed funds to a Series LLC. The Series LLC has its own records and obligations under the Parent LLC's Operating Agreement and the Series Contribution Agreement. These agreements establish ownership (99% Trust / 1% Parent), management authority (Parent as Manager), and your Trust's right to allocations of profits, losses, and deductions.

BoxHouse Purchase Agreement

The Series LLC purchases the specific BoxHouse unit from BoxHouse Finance LLC. The agreement confirms purchase of the unit and BoxHouse's responsibility for shipping and initial installation. The unit's serial number is tied to your transaction for recordkeeping.

Promissory Note & Security Agreement

The Series LLC finances a portion of the unit's purchase price through a seller-financed note payable to BoxHouse. Terms include stated interest at mid-term AFR annual rate, deferred payment periods, interest-only payments and a balloon payment at maturity. The BoxHouse unit itself serves as collateral under the Security Agreement.

Debt Guarantee

Your Trust provides a guarantee of the Series LLC's obligations under the Promissory Note. This ensures the lender (BoxHouse) has recourse in case of default, and is part of what makes your contribution "at risk" for tax purposes.

ReadyPod Addendum

Each Series LLC is added under the Parent's Master Services Agreement with ReadyPod (or similar service provider). This allows the unit to generate potential operating revenues under the MSA. Revenues are not guaranteed and depend on third-party demand.

* Important Notes

You are not signing these agreements directly; your Trust or the Series LLC (through its Manager) is the contracting party. These agreements are described here for transparency only. The purpose of this structure is to operate a business with potential economic returns. While tax benefits may be available, they are not the primary or sole purpose.

Grantor Trust

(Quick Explainer)

What It Is

- A Grantor Trust is established for each buyer.
- Trust is named in a way that identifies it with the related Series LLC for the transaction.
- Buyer is the Grantor (Settlor or funder of the Trust). The Grantor is the party that receives the results of operations and tax effects.
- Parent LLC and Buyer serve as the Co-Trustees.

Why It Exists

- To be the material participant in the Series' operations via the material participation of its trustees.
- To own a 99% interest in a Series LLC that buys the BoxHouse unit.
- To guarantee the debt on that unit, giving it tax basis.
- To pass through income, expenses, gains and losses to the buyer’s tax return.

Key Points

- Grantor Trust: All tax effects flow straight to the Grantor (buyer).
- Co-Trustee Duties: Parent LLC and Buyer actively manage the Series (contracts, accounting, insurance, debt service, monitoring).
- Material Participation: Because the Co-Trustees do the work, the trust receives Material Participation status, and the benefits of that status pass through to the Grantor.
- Beneficiary: The Buyer
- Flexibility: Co-Trustees can, if needed later, convert the trust to a non-grantor trust (for estate planning or compliance reasons).
- Governing Law: The trust can be domiciled in any state, with the default state being Delaware, where the Series is domiciled.

Takeaway

- The Grantor Trust is a structure that is intended to:
- Pass-through to the buyer the full year-one tax effect related to the purchase of the BoxHouse unit and other benefits from ongoing operations.
- Keeps the Parent LLC responsible for active management with Buyer serving as Co-Trustee.

DECLARATION OF TRUST

_____

Effective _____

_____Trust Agreement

This Agreement is made as of _____, by and between _____, as **Settlor** (when reference is made to them in their capacity as creator of this Trust and the person funding the Trust as provided herein) on the one hand and _____ as the initial co-trustees of the Trust (collectively referred to herein as the "**Trustee**").

I, _____, as Settlor, hereby transfer to the Trustee the property described in attached **Schedule A**, which shall constitute the initial principal of the "_____" (hereinafter sometimes referred to as the **"Trust"**).

Article I: Family

If I am legally married, the person to whom I am married shall be referred to herein as **"Spouse"** (if I am then legally married).

I may have one or more **Children** (each, a "Child" and collectively, the "Children"), and/or **Then Living Descendants**.

If at any time I have no Spouse, no Children, and no Then Living Descendants, distributions shall instead be made as provided in Article III: **"Ultimate Contingent Beneficiaries."**

Article II: Disposition of Trust

The Trust shall be administered and disposed of as follows:

A. Payments to Beneficiaries. The Trustee shall pay to or for the benefit of any one or more of the Beneficiaries such amount or amounts of the net income and principal, even to the extent of all or none, at any time. In making such determinations, the Beneficiaries' other financial
resources of any kind or tax attributes may be ignored.

B. Distribution on Settlor's Death Upon Settlor's death, subject to or in default of Settlor's effective exercise of Settlor's power of appointment:

- If **Spouse** is then living, the Trustee shall distribute all property of the Trust that is included in Settlor's gross estate (but excluding any life insurance of which Spouse is an
  insured) to Spouse.

- If **Spouse** is not then living, the Trustee shall allocate the balance of the then remaining Trust Property among Settlor's **Then Living Descendants by Right of Representation**.

- If Settlor has no Then Living Descendants, the Trustee shall dispose of the then remaining Trust Property as directed in the Article titled **"Ultimate Contingent**
  Beneficiaries."

Article III: Ultimate Contingent Beneficiaries

Whenever property is to be disposed of as directed in this Article, such property shall be distributed to those persons, other than creditors, who would receive Settlor's personal property under the laws of the State of Delaware then in force, as if Settlor died intestate on the date stipulated for distribution, unmarried and domiciled in such State, and as if Settlor owned only the Trust Property to be distributed.

Article IV: Successor and Additional Trustees

A. My Designation of Successor Trustees. Should the named Trustee fail to serve during Settlor's life, a successor trustee shall be designated in accordance with this Agreement.

B. Unfilled Vacancy in Trusteeship. If at any time no trustee is acting with respect to a trust and no trustee assumes office within forty-five (45) days of such vacancy, or if at any time an additional trustee is required to serve hereunder and no such trustee assumes office within
forty-five (45) days, then a court of competent jurisdiction shall designate an appropriate person or corporate trustee as trustee.

C. **Trustees of Succeeding Trusts.** Except as otherwise provided in this Agreement, in an instrument appointing property in further trust, upon the creation of a trust (a "New Trust"), the initial trustees of such trust shall be those persons (who are living upon such creation) and entities who were serving as trustees of the trust hereunder from which such New Trust was created.

D. Non-Fiduciary Capacity. The powers to create, amend and revoke plans of trustees and the powers to appoint and remove trustees in this Article are held and exercisable only in a non-fiduciary capacity.

Article V: Grantor Trust Provisions

A. Trustee's Grantor Trust Powers. At any time during Settlor's lifetime, and without any liability to the current or future beneficiaries:

1. The Trustee, or the trustee of any trust hereunder, may:

   ○ add any charitable organization as a current or future beneficiary of such trust or any trust created thereunder, and determine the terms and conditions under which such person or charitable organization shall be a beneficiary; provided, however, that the trustee may not participate in any decision to add such trustee as a beneficiary of the trust; provided, further, the trustee shall not add any charitable organization as a current or future beneficiary if such addition would cause such trust to not qualify as an "electing small business trust" or as a "qualified subchapter S trust" (assuming the appropriate election for such trust is made under Section 1361 of the Code) or if such addition would cause an "S Corporation" (as hereinafter defined) (the shares of which are owned by such trust) to cease to qualify as an S Corporation; and

   ○ lend the property of such trust to Settlor without adequate security.

2. Only those trustees (if any) who are nonadverse parties (as defined in Section 672 of the Code) may participate in any decision whether to exercise the powers granted pursuant to this subsection A.1.

3. The trustees of any trust hereunder who are either my Spouse or nonadverse parties (as defined in Section 672 of the Code), if any, may use the income of such trust to pay premiums on policies of insurance on my life (excluding "second-to-die" policies of insurance on my and my Spouse's joint lives), and the trustees (other than my Spouse) who are nonadverse parties (as defined in Section 672 of the Code), if any, may use the income of such trust to pay premiums on policies of insurance on my Spouse's life and on my and my Spouse's joint lives ("second-to-die" insurance), in each case without the approval or consent of any other trustees.

B. During Settlor's Life. During Settlor's life:

● No adverse party (as defined in Section 672 of the Code) of any trust hereunder may participate in any decision whether to pay trust property to a beneficiary, either in a fiduciary or non-fiduciary capacity, unless a trustee who is a nonadverse party also may make distributions of trust property without the approval or consent of any adverse party; provided, however, that the foregoing shall not preclude a beneficiary's exercise of a

power of appointment held in a non-fiduciary capacity, and the foregoing shall not apply to my Spouse if my Spouse is a current beneficiary of such trust.

- Notwithstanding any other provision of this Agreement, in the event all of the trustees of a trust are adverse parties, then there shall be deemed to be a vacancy in the trusteeship which must be filled unless my Spouse is a trustee and a current beneficiary.

C. Release of Grantor Trust Powers. At any time, and without any liability to the current or future beneficiaries, the Settlor may release the powers granted or retained by Settlor pursuant to this Article in whole or in part, effective immediately or upon a specified event or contingency, and effective in perpetuity or until a specified event or contingency, and upon and during any such release, the provisions of Section B of this Article shall cease to be of any force or effect. Settlor recognizes that the release of such powers could result in the trust ceasing to be treated as a "grantor trust" and thus could increase the amount of income tax borne by the trust
.

D. Power to Reacquire Trust Property. Notwithstanding any other provision of this Agreement, I may (acting in a non-fiduciary capacity and without the approval or consent of any person acting in a fiduciary capacity) reacquire all or any part of the property of a trust hereunder by substituting other property of equivalent value; provided, however, that:

1. I must certify in writing to the trustee that the substituted property and the trust property for which it is substituted are of equivalent value;

2. The trustee shall ensure my compliance with the terms of this power by confirming that the substituted property and the trust property for which it is substituted are of equivalent value and that my exercise of the foregoing power does not result in a shift of benefits among the beneficiaries within the meaning of Revenue Ruling 2008-22 by taking any necessary actions the trustee, in the trustee's discretion, deems necessary, which may include, but are not limited to, engaging an appraiser to appraise such property or seeking a determination by a court of competent jurisdiction that the substituted property and the trust property for which it is substituted are of equivalent value;

3. I may not exercise this power in a manner that can shift benefits among the beneficiaries of the trust;

4. I may not reacquire any property that would cause me to have an incident of ownership, as defined in Section 2042 of the Code, with respect to any insurance policies on my life held as a part of the trust property; and

5. I may release the foregoing power, revocably or irrevocably, at any time by a duly acknowledged instrument delivered to the trustee.

Article VI: Distribution Standards

A. Meanings of Distribution Standards.

As used in this Agreement:

1. **Health** shall be construed liberally to include all forms of mental and physical health care and dental care, including (without limitation) at home, nursing home, assisted living and other extended care, elective procedures and health and dental insurance.

2. **Support** means support and maintenance in reasonable comfort considering the beneficiary's accustomed manner of living, and may include (but not be limited to), as a

   means to provide the beneficiary with such support and maintenance, payments:

   ○ (a) to assist the beneficiary to start or expand a trade, business or profession; or

   ○ (b) to purchase, remodel or expand a residence to be used by the beneficiary.

3. **Education** shall be construed liberally to include all expenses of public or private education at the pre-school, elementary and secondary school level, college, graduate and professional schools, and specialized and vocational training. Such expenses shall include, but are not limited to, tuition, fees, books, supplies, computers and other equipment, room and board, travel between school and the beneficiary's permanent residence, and expenses of extracurricular activities sponsored by the school.

4. **As the trustee determines in the trustee's discretion** (or similar phrasing) shall, except as may be expressly provided otherwise, be construed liberally to confer upon the trustee

   the sole, absolute, and unfettered discretion to distribute or not distribute trust assets to or for the benefit of a beneficiary of the trust. Such standard is intended to give the trustee the greatest amount of discretion and power allowed under law to determine if, when, and for what purposes distributions will be made, and the amount of any such distributions, and the trustee's determination to make or refrain from making distributions shall be conclusive on all persons having an interest in the trust. In accordance with the wholly discretionary nature of each trust to which this standard applies, no beneficiary shall have

any ascertainable, proportionate, actuarial, or otherwise fixed or definable right to or interest in any trust to which this standard applies or any property of any such trust. It is Settlor's intent that all beneficiaries have nothing more than a mere expectancy in the net income or principal of any trust to which this standard applies and that the above language be interpreted to provide the trustee with the greatest discretion allowed under law. The trustee shall have absolute discretion regarding the exercise of the trustee's powers, and such exercise shall be final and conclusive upon all persons interested in the trust.

Whenever the trustee is directed to take into consideration a beneficiary's other financial resources of any kind or whenever the trustee determines in the trustee's discretion to consider a beneficiary's other financial resources of any kind, the trustee may rely on such beneficiary's oral or written statements as to such other financial resources, without any duty of inquiry or verification.

B. Ascertainable Standards. Notwithstanding any other provision of this Agreement, whenever payments are authorized to be made to or for a beneficiary's health, support, or education, such payments are to be limited by "ascertainable standards" within the meaning of Sections 2041 and 2514 of the Code.

Except as otherwise may be expressly provided, the trustee's power to make payments to or for a beneficiary's health, support, or education or other "ascertainable standards" within the meaning of Sections 2041 and 2514 of the Code shall confer upon the trustee the greatest amount of power to determine if such payments will be made.

C. Settlor's Legal Obligations. Notwithstanding any provision of this Agreement, no payment shall be made to or for the benefit of a beneficiary that would discharge any of Settlor's legal obligations.

D. Payments to One or More Beneficiaries. Except as otherwise may be expressly provided, if the trustee of a trust is authorized to make payments to or for the benefit of one or more named persons or entities or to or for the benefit of persons or entities in a specified group, the trustee may make equal or unequal payments to or for the benefit of such persons or entities, without any duty to make equalizing payments, and the trustee's determination with respect to such payments shall be conclusive on all persons interested in the trust.

Article VII: General Provisions

A. Rule Against Perpetuities. Unless earlier terminated, each trust created hereunder (including any trust created by the exercise of a power of appointment granted thereunder) shall terminate as follows:

All trusts, including any trust created by the exercise of a power of appointment thereunder, shall terminate upon the later of:

1. one day prior to three hundred and sixty-five (365) years after the date of this Agreement, or

2. no later than twenty-one (21) years after the death of the last surviving beneficiary who is living on the date of this Agreement.

Upon such termination, the then remaining Trust Property of such trust shall be distributed equally among the current beneficiaries of the trust; provided, however, that if the trust is not GST Exempt and any of the current beneficiaries are not Skip Persons, then the trustee shall, if possible, distribute the Trust Property equally among only the current beneficiaries of the trust who are not Skip Persons, otherwise equally among all the current beneficiaries of the trust.

The trustee may, in the trustee's discretion, take any action necessary to comply with the provisions of this Section, the common law or statutory rule against perpetuities or any applicable law concerning the suspension of the power of alienation of property. For example, the trustee may first create a single or multiple owner entity (such as a limited liability company) to hold real property or other property before or after allocating or transferring such entity interest to any trust hereunder.

B. Spendthrift Provision. Except as otherwise expressly provided in this Agreement, a beneficiary of a trust hereunder does not have any power to transfer, mortgage, pledge, hypothecate or assign any part of his or her interest in the income or principal of any such trust, and the trustee shall not recognize any purported transfer, mortgage, pledge, hypothecation, order, assignment or any other act that would affect an anticipation of any part of a beneficiary's interest in the income or principal of any such trust. The net income and principal of any such trust shall not be subject in any manner to transfer by operation of law except as otherwise expressly provided in this Agreement and shall be exempt from the claims of creditors or other claimants, and any orders, decrees, levies, attachments, garnishments and executions, and other legal and equitable processes or proceedings to the fullest extent permissible by law.

The provisions of this Section shall not prevent (1) the trustee from making any such payment by depositing the payment in any bank or banking institution to the credit of such beneficiary or from making such payment in any other manner expressly provided for in this Agreement, or (2) a beneficiary from making a disclaimer of his or her interest in any trust hereunder.

No power of appointment or power of withdrawal shall be subject to involuntary exercise, but this provision shall not prevent or limit the voluntary exercise of, or transfer pursuant to the exercise of, any power of appointment or power of withdrawal granted hereunder.

C. Additions. Except as otherwise expressly provided in this Agreement, the trustee of any trust hereunder may accept contributions of property of any kind to the trust, subject to such terms and conditions as may be negotiated by the donor and the trustee with respect to the contributed property.

D. Addition of Income to Principal. Any part of the net income of any trust hereunder that is not paid to the beneficiaries thereof shall be accumulated and, at least annually, added to the trust principal.

E. Irrevocability. Except as otherwise expressly provided in this Agreement, none of the trustee, Settlor or any other person may revoke this Agreement, and Settlor hereby waives all statutory and other legal rights to do so, either alone or in conjunction with any other persons.

F. Relinquishment of Rights. Notwithstanding any provision of this Agreement, Settlor hereby relinquishes (1) possession or enjoyment of, and the right to the income from, the Trust Property; (2) all rights and powers, whether alone or in conjunction with any other person, to designate the persons who shall possess or enjoy the Trust Property and the income therefrom; and (3) all rights and powers that would cause Settlor to have an incident of ownership, as
defined in Section 2042 of the Code, with respect to any insurance policies on Settlor's life held as a part of the Trust Property.

No right, power or discretion granted to the trustee or any other person by this Agreement or by law shall be exercisable in a manner that would frustrate the foregoing. Should the provisions of this Agreement be inconsistent or in conflict with the foregoing, then this Section shall supersede the provisions that are set forth herein.

G. Character of Payments. All payments of Trust Property to a beneficiary, whether of trust income or principal, shall be the separate property of such beneficiary, and all income, rents, issues, profits, gains, and appreciation in respect of such Trust Property paid or distributed to a Beneficiary shall also be the separate property of such Beneficiary.

H. Powers of Attorney-In-Fact. All the rights and powers Settlor has reserved under this Agreement may be exercised or released by Settlor's duly authorized attorney-in-fact under a power of attorney that expressly refers to this Agreement and shall not be exercised or released by any guardian, conservator or other person on Settlor's behalf unless such person was nominated or appointed in writing by Settlor.

I. Additional Instruments. A copy of any instrument created pursuant to this Agreement shall be kept with the trust records.

J. Funding Marital Amounts. For purposes of funding any amounts payable to Spouse or to a Marital Trust upon Settlor's death, to the extent possible, the Trustees shall allocate only assets that could qualify for the federal marital deduction if distributed outright to Spouse.

K. Substantial Decisions of the Trust. Notwithstanding any provision of this Agreement but subject to the power of the trustee to change the situs of the trust pursuant to the Article titled "Powers, Rights and Duties of Trustees and Other Fiduciaries" and the Section titled "Governing Law" in the Article titled "Interpretive Rules," all "substantial decisions" (as defined in Treas. Reg. Section 301.7701-7(d)(1)(ii)) of the trust shall be made exclusively by "United States persons" (as defined in Section 7701(a)(30) of the Code) and no substantial decision of the trust shall require the consent, or be subject to the veto, of any person who is not a United States person.

Any provision of this Agreement purporting to grant any person who is not a United States person the power to participate, by vote, veto or otherwise, in any substantial decision of the trust shall be void and of no effect.

L. Settlor's Right to Information. Settlor shall have the right to obtain an accounting of all trust assets, income, expenses, losses, or other pertinent financial information upon reasonable request of the Trustee. This shall include any information for any entity in which the Trust has an ownership interest which shall entitle it to financial information for such entity. The Trustee shall promptly respond to any such request and produce the requested information within a reasonable time.

Article VIII: Powers, Rights and Duties of Trustees and Other Fiduciaries

A. **General Trustee Powers**. In addition to the powers now or hereafter conferred by applicable law, including but not limited to those powers authorized by the Section 3324 of Title 12 of the Delaware Code and the powers specifically enumerated in Section 3325 of Title 12 of the Delaware Code, (such powers being incorporated herein by this reference) the Trustee may exercise the following powers:

1. make payments or distributions (including the satisfaction of any pecuniary legacy) of income or principal in kind or in money, or partly in each, in shares of differing composition, without regard to the income tax basis of specific property allocated to any beneficiary (including any trust);

2. hold, manage, insure, coinsure, reinsure, improve, repair, access and control all Trust Property, real or personal, including digital assets;

3. sell for cash or credit, or on installments, at public or private sale, grant options to purchase, and convey or exchange any Trust Property for such price, including property of equivalent value (whether of like kind or similar use), and upon such terms, as the trustee determines;

4. lease or license the use of any tangible or intangible personal property at any time forming a part of the Trust Property upon such terms as the trustee determines;

5. borrow money from any source (including from such trustee or any other fiduciary hereunder), extend or renew any existing indebtedness; mortgage or pledge all or any

part of the Trust Property; guarantee payment of any loan from any entity; and pledge or hypothecate all or any part of the Trust Property as collateral for any loan, indebtedness or guarantee;

6. release, assign, settle, compromise, contest, participate in mediation, agree to arbitrate, and be bound thereby, extend the time for payment of, or abandon, claims or demands in favor of or against the Trust Property or any part thereof;

7. sell, convey, exchange, release, mortgage, encumber, lease, partition, improve, manage, protect and subdivide any real estate interests or parts thereof; dedicate roads or other portions of the property for public use, adjust boundary lines, vacate any subdivisions or parts thereto, grant options to purchase; lease such property, or any part thereof from time to time in possession or reversion, by leases to commence currently or in the future, and upon any terms and for any period or periods of time including a period beyond the term of the trust (including, if permissible under applicable law, beyond the term of the rule against perpetuities); renew or extend leases, amend, change or modify the terms and provisions of any lease, and consent to the assignment of leases, contract to make leases and grant options to lease and options to renew leases and options to purchase the whole or any part of any reversion; grant easements or charges of any kind; release, convey or assign any right, title or interest in or about an easement appurtenant to such property or any part thereof; construct and reconstruct, remodel, alter, repair, add to or take from buildings on such premises; purchase or hold real estate, improved or unimproved, or any reversion in real estate subject to lease; direct the trustee of any land trust of which the trust is a beneficiary to convey title to the real estate subject to such land trust, execute and deliver deeds, mortgages, notes, and any and all documents pertaining to the property subject to such land trust and in all matters regarding such trust or execute assignments of all or any part of the beneficial interest in such land trust;

8. abandon any Trust Property that the trustee deems to be worthless or not of sufficient value to warrant keeping or protecting; abstain from the payment of taxes, water, rents, assessments, repairs, maintenance and upkeep of any such property; permit any such property to be lost by tax sale or other proceedings, or convey any such property for nominal or no consideration; permit the expiration of any renewal, sale, exchange or purchase option with respect to any property or lease thereof;

9. invest in, purchase, retain or sell any type of property (regardless of whether a security is listed on any stock exchange or other public market, registered with any securities commissions or similar bodies or subject to contractual, legal or other restrictions, including "investment letter" restrictions), including (without limitation) common stock, other stocks, interests in any closely-held business, stock options or warrants, interests in limited liability companies, interests in any type of partnership (including but not limited to general partnerships, limited partnerships, limited liability partnerships, and limited liability limited partnerships), bonds, notes, debentures, mortgages, preferred stocks, puts or calls, voting trust certificates, options, derivative instruments, beneficial interests in land trusts, interests in common trust funds, mutual funds (including mutual funds managed or advised by a fiduciary hereunder), "open-end" or "closed-end" investment funds or trusts, hedge funds, private equity funds (of any type), real estate investment trusts, savings and loan or building and loan associations, commodities, commodity pools, commodity options, commodity partnerships, swaps, caps and collars and any and all derivations thereof, managed futures, managed stock

accounts, foreign exchange, or other property or undivided interests in property, real or personal, foreign or domestic, tangible or intangible;

10. purchase securities on margin and engage in short sales, sales against the box and other investment strategies, whether covered or uncovered;

11. purchase or otherwise acquire, for cash, credit or installments, form, create, organize, invest in, reinvest in, retain or continue for an indefinite term, any "Business Entity" (as hereinafter defined) located within or without the United States, regardless of the form of participation or ownership and even though it may be closely or privately held or may constitute all or a large portion of the Trust Property of a trust; have and exercise all the powers necessary and incidental to ownership in such Business Entity, including authorizing or voting to authorize the making of charitable contributions by such Business Entity; participate in the conduct of such Business Entity or rely upon others to do so, and take or delegate to others discretionary power to take any action with respect to its management and affairs that a person could take as owner of such Business Entity, including the voting of stock, and the determination of all questions of policy; take possession of the assets of such Business Entity and exercise complete control and management of such Business Entity, and in connection therewith, enter into and perform contracts, commitments, orders, and engagements; incur expenses and debts in connection with the conduct and operation of such Business Entity, and pay and discharge such expenses and debts; join in and execute operating agreements, partnership agreements and amendments thereto; participate in any incorporation, reorganization, merger, consolidation, recapitalization, liquidation or dissolution of such Business Entity or any change in its nature and retain and continue such changed or successor Business Entity; invest additional capital in, subscribe to or buy additional stock or securities of or make or guarantee new or increased secured, unsecured or subordinated loans to any Business Entity with trust funds; rely upon the reports of certified public accountants, appraisers, consultants and other professional advisors, without independent investigation and without obligation to file any report with any court in any jurisdiction; elect, employ and compensate directors, officers, employees or agents of any Business Entity, who may include the trustee or a director, officer or agent of the trustee; show in summary form in the trustee's accountings, if any, only the financial position of a Business Entity and not include in detail all the business transactions; deal with and act for such Business Entity in any capacity, including any banking or trust capacity and the loaning of money out of a trustee's own funds, and be compensated therefor; sell, pledge or liquidate any interest in such Business Entity; provided, however, that notwithstanding the provisions of this subsection, the trustee shall not purchase or otherwise acquire, form, create, organize, invest or reinvest in any Business Entity that is not publicly traded on an established securities exchange or an open-end regulated investment company if the trustee is employed by such Business Entity or if the trustee (or the trustee's family) directly or indirectly owns an interest in such Business Entity, unless (i) the trustee is a descendant of Settlor's grandparents or a spouse of such a descendant; (ii) the beneficiary, a descendant of the beneficiary's grandparents, a descendant of Settlor's grandparents or a spouse of any of such persons is employed by or owns (directly or indirectly) an interest in such Business Entity; or (iii) the beneficiary consents to such action in a duly acknowledged instrument filed with the trust records; provided, further, that the trustee may continue to hold interests in any Business Entity held by the trust at the time the trustee began serving as such;

12. invest and reinvest the Trust Property wholly or partially in any interests in oil, gas or other mineral resources received from any source, such investments to be made either directly or through entities intended to protect the Trust Property; retain any interests in oil, gas or other mineral resources; execute as to those interests any agreements, assignments, contracts, deeds, grants, leases for any term (even though the term may extend beyond the termination of such trust) and any other instruments or documents; manage, control, operate, explore, mine, develop or take any action for the production, recovery, sale, treatment, storage or transportation of any interest in oil, gas or other mineral resources; drill, rework or recomplete wells of any type; conduct or participate in secondary recovery operations; enter into agreements for pooling or unitization; install, operate or participate in the operation of any plant, mine or other facilities; and interests in oil, gas and other mineral resources may be retained and acquired without liability for any loss and without application to any court;

13. acquire or retain any farm, ranch or forest property; engage in farm, ranch and forestry operations and the production, harvesting and marketing of farm, ranch and forest products, including livestock breeding and feeding and poultry and dairy farming, either by operating directly with hired labor, by retaining farm managers or management agencies, by renting on shares or for cash, by entering into logging contracts or selling standing timber, or in any other manner; enter into farm programs; purchase or rent farm, ranch and forest machinery and equipment, livestock or other animals, poultry, seed and feed; improve farm, ranch and forest property and repair, improve and construct farm buildings, fences and drainage facilities; and in general to do all things customary or desirable in farm, ranch and forest operations;

14. determine whether and to what extent receipts and expenditures should be allocated to or charged against income or principal; and except as may be otherwise provided herein, the trustee is not required to adhere to the provisions of the applicable Principal and Income Act (but in no event shall any such allocation fundamentally depart from state law); provided, however, that these powers may not be exercised in a manner that would deprive Settlor's spouse, as the beneficiary of the Marital Trust, of the same degree of beneficial enjoyment to which a life beneficiary would be entitled under applicable principles of trust law; provided further, that any proceeds received by the trustee from any "Qualified Retirement Plan" (as hereinafter defined) shall constitute principal, except to the extent of income earned on such proceeds after the plan participant's death which shall constitute income; establish out of income and credit to principal reasonable reserves for the depreciation or depletion of tangible personal properties; amortize premiums paid on the purchase of securities or other property; provided, however, that any capital gain dividends from investments in mutual funds, common trust funds or real estate investment trusts shall be deemed to constitute principal;

15. employ and pay reasonable compensation to such agents, brokers, advisors, trustees, custodians, depositaries, title holders, escrowees, accountants, attorneys, investment counsel, appraisers, insurers, administrative assistants and others (who may be the trustee in such other capacity or any firm or corporation with which the trustee is associated), and execute any general or limited direction or power of attorney for any such employment or agency relationship; and such expenses shall not be charged against the compensation of the trustee;

16. vote, or refrain from voting, any corporate stock, equity or any other ownership interest in any corporation or other entity, either in person or by general or limited proxy, for any purpose, including (without limitation), the election of any trustee or beneficiary as a director of any such entity; exercise or sell any conversion privilege, warrant, option or subscription right with respect to any security; consent to take any action in connection with, and receive and retain any securities resulting from, any reorganization, consolidation, merger, readjustment of the financial structure, sale, lease or other disposition of the assets of any corporation or other entity, the securities of which may at any time form a part of the Trust Property; deposit any securities with or under the direction of a committee formed to protect such securities and consent to or participate in any action taken or recommended by such committee; pay all assessments, subscriptions and other sums of money that may seem expedient for the protection of the interest of the trust as the holder of such stocks, bonds or other securities; enter into an agreement making the trust liable for a pro rata share of the liabilities of any corporation or other entity that is being dissolved and in which stock or other ownership interest is held, when, in the opinion of the trustee, such action is necessary or otherwise advisable to the plan of liquidation and dissolution of any such corporation or other entity; join in and vote for participation in or modification or cancellation of any restrictive purchase or retirement agreement relating to any partnership interest, corporate stock or any other interest in any type of entity held as a part of the Trust Property; join in the formation, amendment, extension or cancellation of any voting trust, voting agreement or any type of shareholder agreement;

17. cause any securities or other Trust Property to be issued, held, or registered in any trustee's individual name, or in the name of a nominee, with or without disclosure of any fiduciary capacity, or in a form such that title will pass by delivery;

18. deal in every way and without limitation or restriction with the personal representative, trustee, or other representatives of any trust or estate in which the beneficiary has any existing or future interest (even though the trustee may be acting in such other capacity), and such transactions may include, without limitation, the purchase or sale at fair market value, or the loan (for any period, but only upon adequate security and interest) of any part of the Trust Property from or to such other estate or trust;

19. open margin accounts, discretionary accounts or any other type of account with brokerage firms, banks or others, and invest the Trust Property in, and conduct, maintain and operate, these accounts for the purchase, sale and exchange of stocks, bonds and other securities, and in connection therewith, borrow money, obtain guarantees, and engage in all other activities necessary or incidental to conducting, maintaining and operating these accounts;

20. open and maintain one or more savings accounts or checking accounts and rent safe-deposit boxes or vaults, wherever located, within or without the United States, even if the bank or trust company at which the safe-deposit box or vault is located is acting as trustee of such trust; deposit to the credit of such account or accounts all or any part of the Trust Property, irrespective of whether such property may earn interest; add to or remove some or all of the items placed in any safe-deposit box or vault; withdraw a portion or all of such funds so deposited by check or other instrument signed by the trustee, or by such other person or persons as the trustee may authorize, and any such bank, company or association may allow such person

or persons access to such safe-deposit box or vault and to pay such check or other instrument and also to receive the same for deposit to the credit of any holder thereof when so signed and properly endorsed, without inquiry of any kind; and access when so allowed, and payments when so made by such bank, company or association, shall not be subject to objection by any person concerned or interested in any way in the trust;

21. register or qualify any securities under the Securities Act of 1933, as amended, or any similar or applicable federal law, and register or qualify any such securities under any state securities law; enter into such agreements with underwriters and the corporation that issued any such securities as the trustee deems proper; make such representations and warranties, assume such obligations, and engage in such undertakings of indemnity and make such other arrangements concerning undertakings of indemnity, including the purchase of any insurance policies, as the trustee deems proper; create escrows, enter into custody agreements, and execute powers of attorney and any other instruments delegating authority and discretion to others; and do any and all other acts and things that the trustee deems necessary or advisable for the purpose of the sale, exchange, transfer, or other disposition of any securities;

22. retain, sell (in a public or private sale), hypothecate or otherwise dispose of any paintings, drawings, prints, pictures, photographs, statues, porcelain, silver, books, furniture and furnishings, and other art objects, antiques or collectibles received by the trustee; pay any storage charges, insurance premiums and costs of maintenance and preservation in connection therewith; and lend any such art objects, antiques or collectibles to any beneficiary or any organization, or exhibit them for or without rent or other consideration, on such terms as the trustee deems advisable;

23. lend the principal or income of the Trust Property to the beneficiary thereof, with or without interest or security; and make loans to such other persons (other than me except as provided in the Article titled "Grantor Trust Provisions"), Business Entities, trusts or estates, upon such terms, with such rates of interest and with such security as the trustee deems adequate to protect the trust;

24. allocate different kinds or disproportionate shares of Trust Property or undivided interests in Trust Property among beneficiaries of separate trusts and determine the value thereof; except as otherwise provided herein, make joint investments with other trusts and hold such joint investments as a common fund for purposes of administration, dividing the net income therefrom in the same proportions as the respective interests of such trusts;

25. to the extent permitted by and subject to the conditions of applicable law, at any time and from time to time, and subject to revocation at any time, delegate any of the trustee's authorities, discretions and powers to any persons or entities, such delegation and all revocations thereof to be evidenced by a duly acknowledged instrument delivered to the persons or entities to whom the delegation is made and filed with the trust records;

26. purchase, maintain and sell insurance or endowment policies, annuities or variable annuities of any kind on the life of any person and exercise all the rights, options, benefits and other incidents of ownership with respect to such policies and annuities, and pay premiums for the purchase or maintenance of any such policy or annuity out of Trust Property;

take such action, including the commencement of legal proceedings, to collect those proceeds of any such policy or annuity; provided, however, that no issuer of such a policy or annuity shall have any obligation to inquire into the terms of this Agreement or to see to the application of the proceeds and the benefits of such a policy or annuity; and, provided, further, that a receipt duly executed by the trustee and delivered to any such issuer shall be effective to release the issuer from any liability in connection with such policy or annuity; provided, further, that the trustee shall have no duty to maximize the earnings of the Trust Property by borrowing the cash value of any life insurance policy; provided, further, that except as otherwise expressly provided in this Agreement, the income of the trust may not be used during Settlor's lifetime to pay premiums on policies of insurance on the life of me or Settlor's spouse;

27. amend this Agreement to eliminate in whole or in part a current or future beneficiary's power to appoint property of a trust (other than a Marital Trust) to himself or herself, his or her creditors, his or her estate, or his or her estate's creditors, or to impose such terms and conditions on the exercise of such power as the trustee determines in the trustee's discretion, by means of an instrument duly acknowledged by the trustee and delivered to the beneficiary of such trust; provided, however, that the trustee shall have no duty to determine whether to exercise this power unless the beneficiary, by a duly acknowledged instrument delivered to the trustee, requests that the trustee do so; and provided further, that neither I nor any Beneficiary-Trustee of a trust shall have any vote or otherwise participate in any decision to exercise the powers granted hereunder with respect to such trust;

28. divide the Trust Property equally or unequally into two or more separate shares or trusts for any purpose, each of which shall be administered and disposed of as a separate trust having terms identical to those of the trust from which it is created, and allocate different kinds or proportionate or disproportionate shares of property or undivided interests in property between the shares or trusts;

29. invest in, purchase, retain, lease (or guaranty payment of a lease for) one or more residences (and related furniture, furnishings and other articles of household use and ornament) and permit any person having any interest in such trust, and the guardian or the conservator of the person of such beneficiary or any adult designated by such guardian or conservator, and the family of such beneficiary, guardian, conservator or adult, to use such residences and furnishings forming part of such trust, upon such terms as the trustee deems advisable, with or without rent or in consideration of the payment of taxes, insurance, maintenance and ordinary repairs, or otherwise; provided, however, that with respect to any trust that qualifies or is elected to qualify for the marital deduction, the trustee may permit only the current beneficiary of such trust to use such residence for less than fair market value; provided, further, that notwithstanding the provisions of this subsection, the trustee, in the trustee's discretion, may sell or otherwise dispose of any such residence and furnishings, and reinvest all or any part of the proceeds in other residences and furnishings;

30. manage and invest in solido any trust or trusts created by me which have identical terms and an identical beneficiary or beneficiaries;

31. invest Trust Property in, and sell or otherwise dispose of, remainder interests, income interests, life estates, annuity interests and other terminable, term or future

interests or similar types of limited interests in property; and make joint purchases and sales of any property or interests therein with any entity or person. In connection with transactions described in this subsection, the trustee may, but need not, rely upon appraisals or representations of value as the trustee in the trustee's discretion may deem appropriate, including, without limitation, appraisals rendered by professional appraisers, actuaries, accountants, or opinions of counsel;

32. acquire or lease assets for the benefit of or use by a beneficiary irrespective of any risk, nonproductiveness, or lack of diversification;

33. make or refrain from making any tax election;

34. add to or otherwise change the name of any trust for purposes of identification;

35. prior to or simultaneously with the completion of the funding of a New Trust to be created upon the termination of another trust hereunder, make distributions of income or principal from the terminating trust directly to or for the benefit of any beneficiary of the New Trust, as if the trustee were the trustee of such New Trust; and

36. make any payment, receive any money, take any action and make, execute, deliver and receive any contract, deed, instrument or document, that the trustee may deem necessary or advisable to exercise any of the trustee's powers or to carry out any provisions contained herein; and in addition to the powers enumerated hereinabove, do all other acts that in the judgment of the trustee are necessary or desirable for the proper administration of the trust.

B. Absolute Discretion of Trustees. I intend to give the Trustees the broadest possible powers to act hereunder, including rights, powers, and privileges that an absolute owner of such property would have, subject to the trustee's fiduciary obligations and the terms and limitations of this Agreement. Accordingly, subject to the foregoing, the trustee shall have sole and absolute discretion regarding the exercise of the trustee's powers (within the mandate of the powers given to the trustee), and such exercise shall be final and conclusive upon all persons interested in the trust.

C. Duty of Impartiality. The Trustee shall always administer the trust in a manner that is impartial with respect to the beneficiaries, consistent with the priorities and purposes of the trust and the nature and terms of the beneficiaries' interests.

D. Conflict With Applicable Law. To the extent permissible, if there is a conflict between applicable law and this Agreement, the terms of this Agreement shall control.

E. Payments and Distributions to Certain Beneficiaries.

1. Facility of Payments. Notwithstanding any provision of this Agreement, where the trustee is authorized to make payments to a beneficiary, the trustee may make such payments by applying such amounts directly for the benefit of the beneficiary without the intervention of a guardian or similar fiduciary, and in the case of Minor beneficiaries, may make

payments to a custodian under an applicable Uniform Transfers to Minors Act or similar law in any jurisdiction and to any guardian of the person of a Minor beneficiary to help defray the costs of housing and other expenses incurred by such guardian for the direct or indirect benefit of the Minor beneficiary. If no custodian for the beneficiary is then serving under an applicable Uniform Transfers to Minors Act or similar law, the trustee may select a person to act as such custodian.

F. Accountings. Except as otherwise required by law or upon the written request of a beneficiary, the trustee may, but has no duty to, render periodic accounts (whether interim, final or otherwise) of a trust to a beneficiary or to any court; provided, however, that a beneficiary may not call upon a trustee to account more frequently than annually; provided further, that a beneficiary whose only interest hereunder is to a general legacy or specific bequest upon Settlor's death shall only be entitled to an accounting that is sufficient to protect such interest. A beneficiary may grant a trustee a full and complete release from all liability to the beneficiary attributable to any act by or omission of the trustee and may approve any accounting of the trust. Any such release or approval by all adult current beneficiaries of a trust shall be binding and conclusive upon all current and future beneficiaries and remaindermen (including Minor and then unborn beneficiaries and remaindermen) who may then have or thereafter acquire an interest in such trust. Failure by the beneficiary to disapprove of any accounting provided to such beneficiary within ninety (90) days of the mailing of such accounting by a written statement provided to the trustee shall be deemed approval of such accounting. The trustee may, in the trustee's discretion, render an account for any period to any one or more of the current beneficiaries or remaindermen, or may seek judicial settlement of such account. All expenses of the preparation and of the judicial or non-judicial settlement of a trustee's account shall be borne by the trust.

G. Multiple Trusts. Where there are two or more trusts held for the benefit of the same beneficiary, in determining whether to make discretionary payments of Trust Property to the beneficiary from such trusts, the trustee shall consider the tax attributes of such trusts and the tax consequences of any such payments and may make disproportionate payments to the beneficiary from such trusts.

H. Trustee Compensation and Expenses. A trustee shall be entitled to compensation equal to five percent (5%) of the Series Net Profit (determined without regard to the Trustee's fee). Notwithstanding the foregoing, the trustee's fee shall not be less than $500 nor more than $1,500, with both amounts adjusted annually for inflation utilizing the Consumer Price Index. In addition to the fee outlined above, the Trustee shall be entitled to reimbursement of reasonable costs expended in fulfilling its duties and obligations as outlined herein

I. Other Fiduciary Compensation and Expenses. A fiduciary serving in a capacity other than as a trustee shall be entitled to compensation as may be provided in a written agreement between the fiduciary and the person by whom such fiduciary was appointed. If no such agreement exists, then a non-corporate fiduciary serving in a capacity other than as a trustee shall be entitled to receive reasonable compensation for acting as such, and a corporate fiduciary serving in a capacity other than as a trustee shall receive compensation according to such corporate fiduciary's published schedule of fees in effect when its services are rendered. In addition to compensation, a fiduciary shall be entitled to reimbursement for reasonable expenses incurred in connection with such fiduciary's services as a fiduciary.

J. Third Parties. No person or entity dealing with the trustee shall be obliged to inquire as to the powers of the trustee, or to see to the application of money or property delivered to the trustee, and the certificate of the trustee that the trustee is acting in compliance with this Agreement shall fully protect all persons and entities dealing with the trustee.

K. Exculpation from Bond. The trustee shall not be required to furnish a bond for the proper performance of the duties of the trustee as trustee of any trust, but if any such bond is nevertheless required by any law, statute or rule of court, no surety shall be required thereon, and I request that such bond be accepted in the lowest amount possible.

L. No Court Approval. To the extent permitted by law, (1) the trustee shall not be required to qualify before, be appointed by, or in the absence of breach of trust, account to any court or obtain the order or approval of any court in the exercise of any power conferred upon the trustee (and may exercise such powers for any period of time, including any period of time beyond the period that is required for an interest created hereunder to vest so as to be valid under the rule against perpetuities), (2) the trustee shall not be required to file any inventory or appraisal or any annual or other returns or reports to any court, and (3) the trustee shall be exempt from any statutory or legal duty to register the trust in any court, except for such temporary filing or registration as may be required by any court action involving any such trust.

M. Powers, Duties, Limitations, Immunities and Liabilities of Fiduciaries. Except as otherwise may be expressly provided:

1. Liability and Exoneration of Non-Corporate Fiduciaries. To the maximum extent allowed by applicable law, a non-corporate fiduciary shall not be liable, responsible, or accountable and shall be fully exonerated for any loss occasioned by such fiduciary's own acts and omissions (including acts in reliance upon and opinion of counsel) except for such fiduciary's willful wrongdoing or gross negligence.

2. Indemnification. Each non-corporate fiduciary shall be entitled to indemnification out of the property of the trust of which such fiduciary is serving as fiduciary for costs and legal fees incurred by the fiduciary in any action concerning any act or omission of a beneficiary or of any act or omission of such fiduciary, unless there shall be a finding that such fiduciary's act or omission stemmed from the fiduciary's own willful wrongdoing or gross negligence.

3. Liability of Successor Fiduciaries. Wherever reference is made herein to the fiduciary, such reference shall include any successor fiduciaries at any time acting as the fiduciary of a trust, and unless expressly provided in a plan, this Agreement or otherwise, each successor fiduciary shall be vested with all powers, duties, limitations, and immunities as if originally named as fiduciary. To the maximum extent allowed by applicable law, a successor fiduciary shall not be liable or responsible in any way for the acts or defaults of any predecessor fiduciary, nor for any loss or expense occasioned by any act by or omission of a predecessor fiduciary, and shall be liable only for such fiduciary's own acts and omissions with respect to Trust Property, and a successor fiduciary may accept as correct the account rendered and the assets and property delivered to such fiduciary by the predecessor fiduciary, and shall be under no obligation to institute any action or proceeding for the settlement of the accounts of any predecessor fiduciary and incur no liability to any person beneficially interested in any trust by reason of so doing.

4. Liability of Co-Fiduciaries. To the maximum extent allowed by applicable

law, no fiduciary shall be liable or responsible in any way for the acts or defaults of any co-fiduciary, nor for any loss or expense occasioned by any act by or omission of a co-fiduciary, and shall be liable only for such fiduciary's own acts and omissions, unless such fiduciary fails to dissent in writing or take other action to protect the trust and such failure constitutes bad faith, reckless indifference, willful wrongdoing or gross negligence.

N. Nondiversification and Indemnification. The fiduciaries hereunder shall not be responsible for the failure to diversify investments or make any trust (other than a Marital Trust) created pursuant to this Agreement income producing. Furthermore, the fiduciaries shall be held harmless for any losses because of the failure to diversify or to make any trust created pursuant to this Agreement income producing. The fiduciaries and all persons or entities employed by a fiduciary shall be indemnified by each respective trust created hereunder against expenses actually or necessarily incurred by such person or entity in connection with the defense of any action, suit, or proceeding, whether civil or administrative, relating to nondiversification or any other action taken or not taken with respect to the investment of Trust Property pursuant to this Section, including any such action taken or not taken by the fiduciary, in which such person or entity is made a party by reason of having been a fiduciary or employed by a fiduciary hereunder.

O. Merger of Corporate Fiduciary. If any corporate fiduciary is merged into or consolidated with or sells or transfers all or substantially all its assets and business to another corporate fiduciary, or is in any manner reorganized or reincorporated, the surviving corporate fiduciary shall thereupon become the corporate fiduciary without any further act on the part of such corporate fiduciary.

P. Resignation and Acceptance of Fiduciary.

1. Resignation. Any person or corporate fiduciary acting in any fiduciary capacity hereunder with respect to any trust may resign at any time for any reason by duly acknowledged instrument delivered to each current beneficiary of the trust and to each trustee of the trust, if any, and judicial approval shall not be required. Notwithstanding, in the event a trustee's resignation would leave the office of trustee vacant or would otherwise reduce the number of then serving trustees below the minimum number of trustees that are required to serve under this Agreement, the trustee's resignation shall not be effective until a successor trustee has accepted appointment and assumed office as trustee.

2. Acceptance. Any person or corporate fiduciary designated to act as a fiduciary hereunder shall assume office in such capacity upon such person's or corporate fiduciary's execution of a duly acknowledged instrument accepting such office.

Q. Incapacitated Fiduciary. If any person acting in any fiduciary capacity hereunder is or becomes incapacitated, then said person shall be deemed to have resigned in every capacity in which said person is acting as a fiduciary hereunder.

R. Transition of Trusteeship. A trustee of a trust hereunder that has resigned or has been removed and that has custody of trust assets shall be permitted to hold a reserve in escrow for the payment of taxes, trustee fees, attorney fees and other liabilities and expenses which the trustee or the trust may incur or be liable for with respect to the administration of the trust or with respect to the judicial or informal release of the trustee after the effective date of the resignation or removal.

S. Multiple Fiduciaries. If more than one person or entity is acting in the same

fiduciary capacity with respect to a trust:

1. Majority Vote to Govern. A decision made by a majority of the co-fiduciaries who are qualified to vote on such decision shall control, without liability to any co-fiduciary who dissents in writing. For purposes of this paragraph, if only two (2) co-fiduciaries are qualified to vote on a decision, such decision shall control only if both fiduciaries vote in favor of the decision.

2. Single Signatory. Unless a co-fiduciary elects otherwise in writing, any one co-fiduciary may sign any checks, agreements or other documents on behalf of the trust and such signature shall bind the trust in the same manner as though said check, agreement or other document had been signed by all of the co-fiduciaries acting in the same capacity, and no person or entity dealing with the signing fiduciary shall be obliged to inquire as to the other co-fiduciary's acquiescence to such action.

3. Meetings and Communications. The fiduciaries may carry out their duties, communicate with each other, participate in meetings, or vote via electronic mail, telephone (individual calls or conference calls), facsimile or other communications equipment.

4. Authority. The trustee, whether original or successor, for the time being in office, shall have full authority to act even though one or more vacancies may exist.

T. Valuations. In making distributions or allocations under the terms of any trust to be valued as of a particular date, the trustee may use asset valuations obtained for a date reasonably close to that particular date (such as a quarterly closing date before or after that date) if, in the trustee's judgment, obtaining appraisals or other determinations of value for such date would result in unnecessary expenses, and if in the trustee's judgment, the fair market value as determined by such method is substantially the same as on that actual date. Notwithstanding the foregoing, this Section shall not apply if valuation on a specific date is required to preserve a qualification for a tax benefit, including any deduction, credit, or most favorable allocation of an exemption.

U. Releases of Fiduciary Powers. A fiduciary of any trust may release or renounce, revocably or irrevocably, any or all powers granted hereunder at any time by a duly acknowledged instrument filed with the trust records, and, if so specified, that release or renunciation shall bind all successors acting in that fiduciary capacity.

V. Merger of Trusts. The trustee (other than a Beneficiary-Trustee) of a trust hereunder (other than a Marital Trust or a qualified subchapter S trust (as defined in Section 1361(d)(3) of the Code)) may, in such trustee's discretion, merge the trust with any other trust that is held upon substantially the same terms and conditions as the trust hereunder. In determining whether a trust is held upon substantially the same terms and conditions as the trust hereunder, the trustee need not take into consideration the interest of any future beneficiary in either such trust if the value of such future beneficiary's interest immediately before the merger of such trusts is less than five percent (5%) of the value of the property of the trust in which such future beneficiary has an interest. The merged trust may be administered and disposed of by such trustee under the provisions of the trust hereunder or under the provisions of the instrument governing such other trust, and the trust hereunder shall cease to exist if it merges into another trust. In accordance with the foregoing, in the event another trust is merged into a trust hereunder, such trustee may shorten the period during which the trust hereunder subsists to comply with the provision herein titled "Rule Against Perpetuities," if necessary, to effectuate such merger. I understand that the trustee's

exercise of this power could result in the interruption of the succession of trustees provided for in this Agreement, including the immediate cessation of services of the acting trustee, and the administration of each such trust by a trustee not named herein or nominated hereunder.

W. Transfers to Other Trusts. The trustee (other than a Beneficiary-Trustee) of a trust hereunder (other than a Marital Trust or a qualified subchapter S trust (as defined in Section 1361(d)(3) of the Code)) may distribute all or any part of the Trust Property as such trustee, in such trustee's discretion, deems advisable to the trustee of one or more other trusts created or to be created by any person, including such trustee hereunder (and such trustee is hereby authorized to create a trust for such purpose), for the benefit of all of the beneficiaries of such trust hereunder, but only if such other trust or trusts are held upon substantially the same terms and conditions as the trust hereunder; provided, however, that if the trustee determines in the trustee's discretion that any beneficiary is or may be a "Disabled Descendant" (as hereinafter defined), then the trustee may distribute all or any part of the Trust Property to the trustee of one or more other trusts created or to be created by any person, including such trustee hereunder (and such trustee is hereby authorized to create a trust for such purpose), for the benefit of such beneficiary who is or may be a Disabled Descendant regardless of whether such other trust or trusts are held upon substantially the same terms and conditions as the trust hereunder; provided, further, that no such distribution shall be made to any trust that may have a duration exceeding the period after which such trust hereunder is to terminate pursuant to the provision herein titled "Rule Against Perpetuities." In determining whether such other trust or trusts is held upon substantially the same terms and conditions as the trust hereunder, the trustee need not take into consideration the interest of any future beneficiary in any such trust if the value of such future beneficiary's interest immediately before the distribution described in this Section is less than five percent (5%) of the value of the property of the trust in which such future beneficiary has an interest. A distribution may be made to a trust for the benefit of less than all the beneficiaries of the trust hereunder pursuant to the foregoing provisions if the trustee of the trust hereunder is authorized to pay income and principal to the beneficiaries as the trustee determines in the trustee's discretion.

X. Separate Trusts for Income Purposes. If property that is held in, or is to be added or allocated to, a trust held pursuant to this Agreement is subject to different treatment for federal income tax purposes than other property held in or being added or allocated to such trust, then the trustee may hold such property in a separate trust (to be created by the trustee) that is identical in all respects to that trust, with such additional designation for purposes of identification as the trustee determines.

Y. Additions to Existing Trusts. If property becomes distributable to a new trust hereunder, the terms and beneficiaries of which are identical in all respects to a then subsisting trust hereunder, the trustee of the distributing trust, in such trustee's discretion, may add such property to the subsisting trust, to be administered and disposed of as a part thereof.

Z. S Corporation Stock. If a trust owns or will acquire S Corporation Stock or stock in a corporation that is intended to become an S Corporation, the trustee (other

than a Beneficiary-Trustee and other than a trustee of a Marital Trust) may amend the provisions of such trust or the provisions of any trust that may be created from such trust in order to permit such trust to hold stock in an S Corporation or in order to permit such trust to convert from a "qualified subchapter S trust" (as defined in Section 1361(d)(3) of the Code) to an "electing small business trust" (as defined in Section 1361(e) of the Code) or vice versa. This power specifically includes, but is not limited to, the power to amend the provisions of a trust to:

1. eliminate the descendants of a person as current beneficiaries of such trust if such person is also a current beneficiary of such trust;

2. eliminate all potential current beneficiaries of such trust who are not persons, estates, or charitable organizations eligible to hold S Corporation Stock;

3. eliminate or reduce a power of appointment whether in its objects or the time or manner in which it may be exercised;

4. modify the standards of distribution of the income or principal of a trust; or

5. take any other actions that the trustee may deem advisable to permit such trust to hold stock in an S Corporation in the form or type of trust the trustee deems advisable.

Notwithstanding any provision of this Agreement, if the beneficiary of a trust hereunder that otherwise satisfies the requirements of a qualified subchapter S trust (as defined in Section 1361(d)(3) of the Code) makes an election under Section 1361(d)(2) of the Code with respect to such trust, the trustee shall thereafter pay the beneficiary all net income of the trust, in annual or more frequent installments.

AA. Taxation of Trust. The trustee shall not take any action that would cause the trust to be taxable as a corporation or an association.

BB. Special Powers of Trustee. By a duly acknowledged instrument filed with the trust records, the trustee (other than a Beneficiary-Trustee) may amend the terms of the trust in any respect believed by the trustee to be necessary or desirable:

1. to realize the intended tax consequences of any provision hereunder, achieve tax advantages or to respond to changes in the Code or applicable state law and the rules and regulations thereunder that otherwise may reduce or eliminate the tax benefits available to the trust and its beneficiaries;

2. to facilitate the administration of the Trust in the interests of the current and future beneficiaries thereof;

3. to correct any typographical or scrivener's error; or

4. to restate this Agreement in its entirety solely to reflect and incorporate changes made by one or more of the following:

a. any permissible amendment to this Agreement; and

b. any exercise of a power of appointment granted under this Agreement.

In the trustee's discretion, any such amendment may apply prospectively or retroactively to the inception of the trust. The trustee shall have no duty to monitor any trust created hereunder to determine whether any of the powers and discretions conferred under this Section should be exercised, and the trustee is not required to exercise any power or discretion granted under this Section. Any exercise or nonexercise of the powers and discretions granted to the trustee shall be in the trustee's discretion and shall be binding and conclusive on all persons. Further, the trustee shall have no duty to keep informed as to the acts or omissions of others or to take any action to prevent or minimize loss. Absent bad faith, the trustee is hereby exonerated from all liability arising from any exercise or non-exercise of the powers and discretions conferred under this Section.

CC. Conflicts of Interest. A trustee or an affiliate of a trustee shall not be prohibited in any respect from participating in, or from receiving compensation for participating in, any transaction with respect to and on behalf of any trust held under this Agreement due to such trustee's or affiliate's duty of loyalty or duty to avoid conflicts of interest, and such duties are hereby waived for such purpose. By way of example and not limitation, the trustee is authorized, in the trustee's discretion, to enter into transactions with, or retain the services of, any trustee hereunder (including such trustee) or any affiliate of any trustee upon such terms and conditions as the trustee deems advisable, including, but not limited to, transactions or services in which the trustee or any affiliate thereof: (i) acts as a broker, dealer or investment advisor to execute security, insurance, real estate and any other transaction on behalf of any trust hereunder; (ii) purchases assets from or sells assets to any trust hereunder (including, but not limited to, contracts of insurance, securities, derivatives or other financial instruments); (iii) lends money to any trust hereunder; or (iv) acts as the manager or has a carried interest, including investments managed by the trustee or any affiliate thereof. The trustee also is granted discretion, to invest in any money market deposit or similar account, in securities of the trustee or any affiliate thereof, or in one or more investment funds or Business Entities to which the trustee, or any affiliate thereof, renders services and receives compensation therefrom. In addition to receiving compensation for acting as trustee, each trustee and such trustee's affiliates providing services to the trust shall be entitled to compensation from the trust estate for such services as if such services were provided by unrelated entities and without any reduction in compensation because such trustee or affiliate is acting in more than one capacity. As used in this Section, "affiliates" of a trustee shall include any subsidiary of the trustee and any individual or entity associated or affiliated with the trustee or any of such trustee's subsidiaries.

Article IX: Restrictions on Powers of Fiduciaries

A. Restrictions on Trustees. Notwithstanding any other provision of this Agreement, no non-corporate trustee shall participate in the exercise of any discretionary power relating to:

1. The decision whether to pay Trust Property or to grant a power to a current or future beneficiary (whether vested or contingent) if such trustee is a Beneficiary-Trustee (whether vested or contingent), except to the extent such decision is governed by and made pursuant to an ascertainable standard within the meaning of Sections 2041 and 2514 of the Code.

2. The allocation of a Mandatory Payment among the permissible recipients of such Mandatory Payment if such trustee is a permissible recipient of such Mandatory Payment.

3. A distribution of Trust Property that would discharge or satisfy any of his or her legal obligations.

4. A distribution of Trust Property that would constitute a taxable gift by him or her personally if he or she were to so participate.

5. A distribution of, or grant of a power with respect to, Trust Property, if, as to such property, he or she, in his or her individual capacity, previously made a Qualified Disclaimer or "Non-Qualified Disclaimer" (as hereinafter defined), except to the extent the distribution or grant is governed by and made pursuant to an ascertainable standard within the meaning of Sections 2041 and 2514 of the Code.

B. Restrictions on All Fiduciaries. Notwithstanding any other provision of this Agreement, no person or entity acting in any fiduciary capacity hereunder shall participate in the exercise of a power conferred hereunder:

1. that the fiduciary would either be entirely prohibited from exercising, or prohibited from exercising in the manner desired, if such fiduciary were serving as trustee in place of the acting trustee; provided, however, that this provision is not intended to prohibit fiduciaries from exercising powers expressly granted to them, but is only intended to restrict the manner in which they may exercise such powers,

2. to vote shares of stock in a company controlled by the fiduciary (in an individual capacity) (within the meaning of Section 2036(b)(2) of the Code) that were transferred to the trust by the fiduciary (in an individual capacity), except if such transfer was a bona fide sale for adequate and full consideration in money or money's worth,

3. that would constitute an "incident of ownership" (within the meaning of Section 2042 of the Code) with respect to insurance on the fiduciary's life, or

4. that would render any portion of the Trust Property includible in such fiduciary's gross estate,

and any such purported exercise shall be void and of no effect.

C. Trust as United States Person. Notwithstanding any provision of this Agreement, a person or corporate fiduciary shall not serve as fiduciary of a trust if such service would cause the trust to fail to be a "United States person," as defined in Section

7701(a)(30) of the Code unless the trustee amends the Section titled "Governing Law" in the Article titled "Interpretive Rules" to change the jurisdiction whose law shall govern the construction, administration and validity of any trust hereunder such that a court within the United States is no longer able to exercise primary supervision over the administration of such trust within the meaning of Section 7701(a)(30) of the Code.

Article X: Severable and Unenforceable Provisions

If any provision of this Agreement or the application of any such provision to any person or circumstance is determined to be invalid, illegal or unenforceable to any extent, the remainder of this Agreement or the application of such provision to persons or circumstances other than those for which it is determined to be invalid, illegal or unenforceable shall not be affected thereby and each other provision of this Agreement shall be valid and shall be enforced to the fullest extent permitted by law. To the extent permitted by applicable law, the Trustee and I waive all provisions of law that render any provision hereof invalid, illegal, or unenforceable in any respect. The Trustee may modify any provision determined to be invalid, illegal, or unenforceable to the extent necessary to remedy such provision.

Article XI: Interpretive Rules

A. Governing Law. This Agreement shall be construed and administered, and the validity of each trust hereunder shall be determined, in accordance with the laws of the State of Delaware without giving effect to its conflicts of law principles. The Trustee may amend this Section and take any other action to change the jurisdiction whose law shall govern the construction, administration, and validity of any trust hereunder, and to amend any other provision of this Agreement (including the Section titled Trust as United States Person) solely for such purposes. The jurisdiction whose law governs the construction, administration and validity of any trust may, but need not, be the same as the situs of the administration of such trust.

B. Effect of Divorce. Notwithstanding any provision of this Agreement:

1. In the event Settlor or Spouse files a petition for legal separation or dissolution of marriage, Spouse, Spouse's parents, all descendants of Spouse's parents who are not Settlor's descendants, and all spouses of such persons who are not descendants of Settlor's parents shall be deemed to have died intestate on the date of such filing for all purposes of this Agreement (other than for purposes of the Section titled "Rule Against Perpetuities") and (i) any exercises of powers of appointment by such persons that have not become effective prior to the date of such filing shall be null and void and (ii) all plans created by such persons in their individual, fiduciary and representative capacities shall be null and void; provided, however, that if court order(s) are issued dismissing all such petitions (whether filed by me or Settlor's spouse) and I accept the dismissal of such petitions filed by Spouse by a duly acknowledged instrument, then all such persons shall no longer be deemed to have died intestate for all purposes of this Agreement and (i) any exercises of powers of appointment by such persons that were not effective prior to the filing of such petitions shall no longer be null and void, and (ii) all plans created prior to the filing of such petitions by such persons in their individual, fiduciary and representative capacities shall no longer be null and void.

2. In the event a descendant of mine or his or her spouse files a petition for legal separation or dissolution of marriage, such spouse, such spouse's parents, all descendants of such spouse's parents who are not Settlor's descendants and all spouses of such persons who are not descendants of Settlor's parents shall be deemed to have died intestate on the date of such filing for all purposes of this Agreement (other than for purposes of the Section titled "Rule Against Perpetuities") and (i) any exercises of powers of appointment by such persons that have not become effective prior to the date of such filing shall be null and void and (ii) all plans created by such persons in their individual, fiduciary and representative capacities shall be null and void; provided, however, that if court order(s) are issued dismissing all such petitions (whether filed by Settlor's descendant or his or her spouse) and Settlor's descendant accepts the dismissal of such petitions filed by his or her spouse by a duly acknowledged instrument, then all such persons shall no longer be deemed to have died intestate for all purposes of this Agreement and (i) any exercises of powers of appointment by such persons that were not effective prior to the filing of such petitions shall no longer be null and void, and (ii) and all plans created prior to the filing of such petitions by such persons in their individual, fiduciary and representative capacities shall no longer be null and void.

3. Notwithstanding the foregoing provisions of this Section, a person who is deemed to have died pursuant to the foregoing provisions of this Section may nonetheless be subsequently designated to serve in any fiduciary capacity hereunder by a plan made or created after the date such person is otherwise deemed to have died pursuant to the foregoing provisions of this Section.

C. Adoption. Notwithstanding any contrary rule under statutory or common law, a person who has been adopted and the descendants of any such adopted person shall be treated as descendants of the adopting parent or parents and of anyone who is by blood or adoption an ancestor of the adopting parent or parents for all purposes herein, but only if such adopted person was adopted prior to his or her attaining eighteen (18) years of age. A child shall not be considered a descendant of his or her natural or adoptive parent (or of the ancestors of such parent) after the date of a court order terminating the parent's parental rights of the child unless such parental rights were terminated primarily because of the actions of a party other than the parent.

D. State Estate Tax. For purposes of this Agreement, except as otherwise expressly provided herein, all references to a state estate tax shall refer to the state estate and inheritance taxes.

E. Pronouns. As used herein, the pronouns "he" "she" "his" "hers" "him" "her" "it" and "its" shall include the masculine, feminine, neuter and plural thereof.

F. Singular and Plural. As used herein, the singular shall include the plural, and the plural shall include the singular, wherever the context and facts require such construction.

G. Headings. The headings, titles and subtitles herein are for convenience of reference only and are to be ignored in any construction of the provisions hereof.

H. Advancements. Unless stated to the contrary, no distribution from any trust hereunder shall be considered an advancement.

I. Counterparts. This Agreement may be executed in two or more counterparts, each to be deemed an original for all purposes and all together to constitute one and the same Agreement.

J. Duly Acknowledged Instrument. For purposes of this Agreement:

1. An "instrument" is a typed or written document.

2. An instrument shall be considered "duly acknowledged" if it is signed by its creator and, if required by applicable law for any purpose, acknowledged before a notary public as the creator's free act and deed.

3. An instrument may be delivered personally or via the postal service, private courier or delivery service, electronic mail, facsimile, or other means of electronic transmittal.

K. No Duty to Monitor. The trustee shall have no duty to monitor the laws of other jurisdictions to determine whether the powers to change the situs or the jurisdiction whose law shall govern the construction, administration and validity of any trust hereunder should be exercised.

L. Right to Information. The fiduciaries of a trust hereunder shall provide the following to Settlor or Spouse (or the Children if both Settlor and Spouse are either deceased or incapacitated): (1) any information that such person may request from time to time concerning actions that have been taken by such fiduciary, and (2) upon request by such person, a list of the assets of the trust(s) of which such person is empowered to remove fiduciaries and the values of such assets.

Article XII: Definitions

A. "Beneficiary" shall mean the beneficiary or beneficiaries to whom the trustee is currently authorized to pay income or principal. The term "future beneficiary" shall mean the beneficiary or beneficiaries to whom the trustee will or may be authorized to pay income or principal in the future, including unborn beneficiaries, remaindermen, and current and future beneficiaries of trusts that are remaindermen. Neither "beneficiary," "current beneficiary" nor "future beneficiary" shall include potential objects of powers of appointment, and "future beneficiary" shall not include a person who is a contingent beneficiary if there is less than a five percent (5%) probability that such person will become a vested current beneficiary to whom distributions could or are to be made. The current beneficiaries are listed on Schedule B attached hereto.

B. "Beneficiary-Trustee" shall mean any trustee of a trust who is also a current or future beneficiary of such trust.

C. "Business Entity" shall include a corporation, partnership (general or limited), limited liability company, joint venture, sole proprietorship, or other entity under the laws of any state or other jurisdiction that is actively carrying on a trade or business.

D. "By Right of Representation" any allocation to be made to the then living descendants of a person "by right of representation" shall be made as follows: an equal share of the property shall be allocated to (1) each then living descendant of that person in the generation nearest to that person which contains one or more living descendants and (2) each deceased descendant of that person in the same generation who has one or more then living descendants. Each share allocated to a deceased descendant of that person shall be reallocated among such descendant's then living descendants in the same manner as above. A person shall be deemed to be living at a designated point in time if such person then is in utero and is born alive.

E. "Charitable Deduction" shall refer to the federal or state estate tax charitable deduction or the federal or state gift tax charitable deduction, as the context permits. Settlor intends, but does not require, that primary consideration for any allocation, distribution, or other transfer to a Charitable Organization be given to a Donor Advised Fund established by Settlor or Spouse during his lifetime.

F. "Charitable Organizations" shall mean those organizations described in paragraph (2), (3), (4), 04 (5) of Section 170(c) of the Code.

G. "Code" shall mean the United States Internal Revenue Code of 1986, as amended, the regulations thereunder, or the corresponding provision of any subsequent federal tax law.

H. "Corporate Trustee" shall refer to any bank, trust company, institution, or other legal entity (other than a person) authorized or not prohibited from serving as a trustee (by law or otherwise), regardless of the legal form of such entity.

I. "Descendants" shall mean a descendant in any degree of consanguinity, including any descendants born at any time after the person's death.

J. "Digital Assets" shall refer to any photos, videos, music, documents, or other files that are in electronic or digital format, as well as any Internet website accounts.

K. "Direct Skip" shall have the meaning ascribed to such term by Section 2612(c) of the Code.

L. "Disabled Descendant" shall mean a descendant of mine who (i) is disabled; or (ii) is receiving, or may be eligible to receive, assistance or other benefits under a means-based government program (such as Medicaid or Supplemental Security Income). As used above, the term "disabled" means disabled as defined in United States Code Title 42, Section 1382c(a)(3), or under the law of the jurisdiction in which the person resides related to means-based government programs. As used above, the term "assistance" means assistance or medical assistance as defined in United States Code Title

42, Section 1396d(a), or under the law of the jurisdiction in which the person resides related to means-based government programs.

M. **"Fiduciary"** shall refer to any trustee or other Person or Business Entity serving in a fiduciary capacity.

N. **"Financial Difficulty**" shall mean a pending divorce, pending lawsuit that could result in financial liability, or the filing for discharge of debt, and any time thereafter until the lawsuit has been dismissed or the financial liability has been discharged or paid.

O. **"Grantor"** a person is a Grantor of a trust hereunder (i) to the extent such person made a gift for federal gift tax purposes to such trust, or (ii) to the extent such person made a gift for federal gift tax purposes to another trust (the "original trust") and the property of the original trust was transferred to a trust hereunder pursuant to a trust decanting or an exercise of a power of appointment (but only to the extent such exercise was not a gift for federal gift tax purposes by the person exercising such power).

P. **"Gross Estate**" shall have the meaning ascribed to such term by Section 2031 of the Code.

Q. **"Incapacitated"** a person shall be considered "incapacitated" if (i) such person is a Minor or is under a legal disability (under the laws of such person's domicile); (ii) such person is incarcerated and such incarceration has lasted for more than thirty (30) consecutive days; (iii) such person's whereabouts are unknown and either a "Qualified Beneficiary" of the trust or the trustee of the trust has not been able to locate him or her for at least ninety (90) days; (iv) a licensed physician, within six (6) months after examining such person, signs a letter stating that such examination has occurred and that such person, due to illness or physical, mental or emotional disability, is not able to manage business affairs in a manner similar to that of persons of prudence, discretion and intelligence, and such person shall be considered incapacitated upon the date such letter is signed; (v) such person lacks testamentary capacity; or (vi) such person fails to produce a "Qualifying Letter" within ninety (90) days after a written request is made by a "Qualified Beneficiary" or trustee of the trust; provided, however, no person shall be required to produce a Qualifying Letter more than once during any one year period. A "Qualifying Letter" shall mean a letter signed by a licensed physician after examining a person, which examination shall have occurred no more than six (6) months prior to the date of the request, stating that such examination has occurred and that such person is able to manage business affairs in a manner like that of persons of prudence, discretion and intelligence. A "Qualified Beneficiary" shall mean a person (A) to whom the trustee is directed or authorized to currently distribute net income or principal (a "current beneficiary"), or (B) who, upon a certain event, will receive, or who will be a current beneficiary of a trust that will receive, all or a portion of the Trust Property, assuming nonexercise of all powers of appointment and assuming that such person survives until the event. If a person has been considered "incapacitated" pursuant to this provision but subsequently provides a Qualifying Letter to the trustee, such person shall no longer be considered incapacitated.

R. **"IRD Property**" shall mean items of income in respect of a decedent under Section 691 of the Code.

S. **"Mandatory Payments**" shall refer to payments that the trustee is required to make at or within specified times to one or more beneficiaries of a trust pursuant to this Agreement of (a) the trust's net income, (b) a specified dollar amount, or (c) a specified percentage of the trust value (or portion of the trust value).

T. **"Marital Deduction**" shall refer to the federal or state estate tax marital deduction or the federal or state gift tax marital deduction, as the context permits. The term "federal marital deduction" shall refer to the federal estate tax marital deduction or the federal gift tax marital deduction, as the context permits. The term "state marital deduction" shall refer to a state estate tax marital deduction or state gift tax marital deduction, as the context permits.

U. **"Minor**" shall mean a person who, under the law of the jurisdiction in which the person is domiciled, has not attained the legal age of majority.

V. **"Non-Corporate Trustee"** shall refer to a trustee of a trust that is a Person.

W. **"Person**" shall only mean a natural person.

X. **"Personal Representative**" shall include the personal representative, executor, administrator, or other representative of such person's estate.

Y. **Qualified and Non-Qualified Disclaimer**. As used herein, the term "Qualified Disclaimer" shall have the meaning ascribed to such term by Section 2518 of the Code, the term "Non-Qualified Disclaimer" shall mean a disclaimer that is not a Qualified Disclaimer, and the term "disclaimer" shall refer to a Qualified Disclaimer and a Non-Qualified Disclaimer.

Z. **Qualified Retirement Plan**. As used herein, "Qualified Retirement Plan" shall mean any qualified employer plan, qualified retirement plan, individual retirement plan, and Roth IRA as defined in Sections 4972(d)(1), 4974(c), 7701(a)(37) and 408A(b) of the Code, respectively.

AA. **"S Corporation" and "S Corporation Stock**" the term "S Corporation" shall mean any corporation described in Section 1361 of the Code, and the term "S Corporation Stock" shall mean the stock of an S Corporation.

BB. **"Senior Descendants**" of a person are those members of the most senior generation of the descendants of such person of which at least one member is (i) living and (ii) does not lack testamentary capacity.

CC. **"Spendthrift Provision"** any reference to spendthrift provisions shall refer to 12 Del. C. §§ 3570 to 3576.

DD. **"Spouse**" shall mean the individual to whom Settlor is married, or was married at death.

EE. **"State Estate Taxes**" shall mean all estate, inheritance, and other transfer taxes payable by reason of a person's death under the law of any state or territory of the United States but shall not include any such taxes imposed by the Code.

FF. **"Taxable Estate"** shall have the meaning ascribed to such term by Section 2051 of the Code.

GG. **"Testamentary Capacity**" a person shall be considered to have "testamentary capacity" if such person has sufficient mental capacity to know the nature and extent of his or her property and know the natural objects of his or her bounty to formulate a rational scheme of disposition of such property after death. A person shall be considered to lack testamentary capacity if (i) two (2) licensed board-certified physicians, within six (6) months after examining such person, sign letters stating that such examination has occurred and that such person lacks testamentary capacity; (ii) such person is a Minor; (iii) such person is incarcerated and such incarceration has lasted for more than thirty (30) consecutive days; or (iv) such person's whereabouts are unknown and either a "Qualified Beneficiary" of the trust or the trustee of the trust has not been able to locate him or her for at least ninety (90) days. A "Qualified Beneficiary" shall mean a person (A) to whom the trustee is directed or authorized to currently distribute net income or principal (a "current beneficiary"), or (B) who, upon a certain event, will receive, or who will be a current beneficiary of a trust that will receive, all or a portion of the Trust Property, assuming nonexercise of all powers of appointment and assuming that such person survives until the event. If a person has been considered to lack testamentary capacity pursuant to this provision but subsequently two (2) licensed board-certified physicians, within six (6) months of examining such person, sign letters stating that such examination has occurred and that such person has testamentary capacity, such person shall no longer be considered to lack testamentary capacity.

HH. **"Then Living**" refers to the time when the event necessitating reference to such provision occurred rather than to the subsequent time when the directions of such provision may be implemented.

II. **"Trust Property**" shall include the net income and principal of such trust, real and personal, which includes all the property received initially by the trustee with respect to any trust, all additions thereto received by the trustee from any other source, all investments and reinvestments of such property or such additions thereto, and all accrued or unpaid income of such trust.

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IN WITNESS WHEREOF, I have hereunto set my hand as of the date first set forth above.

SETTLOR

_____

_____

The undersigned hereby accept the trusteeship hereof and the property listed in the attached **Schedule A** and agree to hold and administer the Trust Property pursuant to the terms and provisions of this Agreement, all as of the date first set forth above.

CO-TRUSTEES

_____

_____

Its: Manager

_____

SCHEDULE A

TRUST PROPERTY

Description of Property	**Ownership Percentage**
Cash of $	100%

SCHEDULE B

BENEFICIARIES

Settlor

Grantor Contribution Acknowledgment

This Grantor Contribution Acknowledgment (the “Acknowledgment”) is entered into as of _____, by and between: _____(“Grantor”), and _____, a Delaware limited liability company, in its capacity as Co-Trustee, and the Grantor in the Grantor's capacity as Co-Trustee, of the Grantor Trust _____(the “Trust”).

1. Contribution by Grantor

a. Grantor hereby contributes _____ ($_____) in cash (the “Contribution”) to the Trust.

2. Purpose of Contribution

a. The Contribution shall be held and applied by the Trustee as follows:
b. To fund the Trust’s capital contribution to _____(the “Series”), in the amount of $_____;
c. The Series shall in turn apply $_____toward the purchase of a BoxHouse unit and $_____ toward administrative and professional fees payable under the Series’ agreements.

3. Acknowledgment of Receipt

a. The Co-Trustees hereby acknowledge receipt of the Contribution from the Grantor, or if funds are received after the signature, such receipt is acknowledged upon the settlement of funds into the designated back account, and agrees to administer such funds in accordance with the Trust Declaration and related agreements.

4. Governing Law

a. This Acknowledgment shall be governed by and construed in accordance with the laws of the State of Delaware.

IN WITNESS WHEREOF, the parties hereto have executed this Acknowledgment as of the date first above written.

Grantor and Co-Trustee: _____, _____

Trustee: _____, _____, _____

Series Designation

1. Name and Creation

a. This Series is hereby designated _____ (the "Series"), created on _____pursuant to Article V of the Operating Agreement of _____ (the "Parent").

2. Purpose

a. The purpose of the Series is to acquire, hold, operate, finance, and manage one BoxHouse unit identified by serial number _____, and to engage in related lawful activities including management, leasing, service agreements, debt financing, and other activities incidental thereto.

3. Members and Interests

a. The Members of the Series, their initial percentage interests, and capital contributions are as follows: _____ (the "Trust")(Trustee: _____) — 99% interest; initial contribution: $_____; and _____— 1% interest; initial contribution: $1.

4. Allocations

a. Depreciation Allocation. For federal income tax purposes, 100% of depreciation (including bonus depreciation) shall be specially allocated to the Trust.
b. Other Items. All other profits, losses, and distributions shall be allocated 99% to the Trust and 1% to the Parent, unless otherwise required by law.

5. Management

a. The Manager of the Series shall be the Parent, acting through its authorized representatives. The Manager shall have full authority to manage and control the business and affairs of the Series.

6. Accounting

a. The Series shall maintain separate books and records. A consolidated bank account at the Parent level may be used only if Series-level records adequately segregate and identify the Series' funds and assets.
b. Members shall have a right to obtain an accounting of all Series funds, assets, income, expenses and other pertinent financial information upon reasonable request of the Manager. The Manager shall promptly respond to such request and produce the requested information within a reasonable time.

7. Distributions

a. Cash distributions may be made to Members in proportion to their interests out of net cash flow, at such times and in such amounts as determined by the Manager in its sole discretion, after payment of any debt service and establishment of reasonable reserves.

8. Dissolution

a. The Series shall dissolve upon the earliest to occur of:
    i. Disposition or abandonment of the BoxHouse unit
    ii. Consent of the Members
    iii. Requirement under applicable law
b. Continuation for Debt Obligations. Notwithstanding the foregoing, the Series shall continue in existence solely for the purpose of administering any surviving obligations (including BoxHouse debt) until such obligations are fully satisfied or released.

9. Incorporation by Reference

a. Except as expressly provided herein, the provisions of the Parent Operating Agreement apply to this Series mutatis mutandis.

Executed as of _____

_____

by _____, Manager of Parent

Series Contribution Agreement

(for _____)

1. Formation and Admission of Members

a. The Series has been duly designated as _____(the "Series") pursuant to the Operating Agreement of Parent.
b. By this Agreement, the Members are admitted as the sole Members of the Series.
c. The Members are designated as follows:
   i. _____(the "Trust"), and
   ii. _____(the "Parent").

2. Capital Contributions

a. Trust Contribution. The Trust hereby contributes $_____in cash to the Series, consisting of: $_____to be applied toward the purchase of one BoxHouse unit identified by serial number _____, and $_____ to be applied to prepaid administrative and professional fees for two years of services (bookkeeping, tax preparation, and management).
b. Parent Contribution. Parent contributes $1 to the Series.
c. The Members acknowledge and agree that no further contributions shall be required except as mutually agreed in writing.

3. Ownership Interests

a. Following the contributions above, the Members' Percentage Interests in the Series are as follows: Trust: 99% and Parent: 1%

4. Allocations

a. Depreciation. For federal income tax purposes, 100% of depreciation (including bonus depreciation) shall be specially allocated to the Trust.
b. Other Items. All other profits, losses, and distributions shall be allocated 99% to the Trust and 1% to the Parent, unless otherwise required by law.

5. Management

a. Parent is designated as Manager of the Series, with full authority to manage and control the business and affairs of the Series in accordance with the Parent Operating Agreement and the Series Designation.

6. Distributions

a. Cash distributions shall be made to Members in proportion to their Percentage Interests out of net cash flow, at such times and in such amounts as determined by the Manager in its sole discretion, after payment of any debt service and establishment of reasonable reserves.

7. Books and Records

a. The Series shall maintain separate books and records. A consolidated bank account at the Parent level may be used only if Series-level records adequately segregate and identify the Series' funds and assets.

8. Tax Matters

a. The Series shall be treated as a partnership for federal income tax purposes, unless otherwise required by law.
b. Schedule K-1s shall be issued annually to each Member. The Trust acknowledges it is a grantor trust and that its share of Series income, losses, and deductions shall flow through to its grantor.

9. Dissolution

a. The Series shall dissolve upon the earliest of:
    i. Disposition or abandonment of the BoxHouse unit,
    ii. Consent of the Members, or
    iii. Requirement under applicable law.
b. Continuation for Debt Obligations. Notwithstanding the foregoing, the Series shall continue in existence solely for the purpose of administering any surviving obligations (including BoxHouse debt) until such obligations are fully satisfied or released.

10. Miscellaneous

a. Incorporation by Reference. Except as expressly provided herein, the provisions of the Parent Operating Agreement apply to this Series mutatis mutandis.
b. Governing Law. This Agreement shall be governed by the laws of the State of Delaware.
c. Entire Agreement. This Agreement, together with the Parent Operating Agreement and the Series Designation, constitutes the entire agreement of the Members with respect to the Series.

Executed as of _____

For _____(Member, 99%):

By: _____, Trustee

Signature: _____

Name: _____

Title: Manager

For _____(Member, 1% and Manager):

Signature: _____

Name: _____

Title: Manager

Special Purpose Manager Appointment (EIN Applications)

This Appointment is made effective as of _____by and between _____(the "Series"), and _____(the "Appointee").

1. **Appointment.** The Series hereby appoints the Appointee as a *Special Purpose Manager* of the Series solely for the limited purpose of serving as "responsible party" in connection with the application for an Employer Identification Number (EIN) with the Internal Revenue Service.

2. **Scope of Authority.** The Appointee is vested with authority to act as and fulfill the role of Responsible Party for IRS EIN application purposes. Such authority is real but limited in scope and shall not extend to the general management or control of the Series' business, assets, or operations beyond what is necessary to fulfill the IRS requirement.

3. **Authorized Filing Representative.** The Appointee hereby authorizes _____, as Manager of the Series and its duly appointed personnel, to prepare, execute, and submit the EIN application and any related IRS filings as authorized representative to the IRS on behalf of the Appointee in its capacity as Special Purpose Manager, and to receive all related correspondence.

4. **Termination.** This appointment shall terminate automatically upon issuance of an EIN for the Series, or earlier upon written notice from the Series Manager.

5. **Continuing Management.** Except as expressly provided herein, all management authority for the Series remains with _____, as Manager.

IN WITNESS WHEREOF, the parties have executed this Appointment as of the date first written above.

For Series:

_____

Title: Authorized Manager, _____

Appointee:

_____

Name: _____

BoxHouse Purchase Agreement

This Purchase Agreement ("Agreement") is entered into as of _____("Effective Date"), by and between: BoxHouse Finance LLC ("Seller"), and _____, a Delaware protected series limited liability company ("Purchaser").

1. Purchase and Sale

a. Seller agrees to sell, and Purchaser agrees to purchase, the following BoxHouse unit:
   i. Model: _____
   ii. Serial Number: _____
   iii. Purchase Price: $_____
   iv. Down Payment: $_____
   v. Financed Balance: $_____

2. Manufacturer's Statement of Origin (MSO)

a. Seller shall deliver the Manufacturer's Statement of Origin (MSO) for the BoxHouse to Purchaser within thirty (30) days after receipt of the Down Payment, either by physical mail or electronic delivery, at Seller's discretion.

3. Delivery and Installation

a. Seller shall be responsible for delivering a disaster relief-ready BoxHouse to Purchaser to location of initial intended use.
b. Purchaser shall be financially responsible for all costs and obligations incurred after delivery of the BoxHouse.

4. Payment Terms

a. The Financed Balance shall be payable pursuant to the terms of a Promissory Note of even date herewith (the "Note"), secured by a Security Agreement granting Seller a first-priority security interest in the Unit.

5. Security Interest

a. Seller retains a security interest in the BoxHouse until Purchaser has fully satisfied all obligations under this Agreement and the related Note and Security Agreement. Purchaser agrees to cooperate with Seller in filing any UCC financing statements or similar documents necessary to perfect this security interest.

6. Warranties

a. Seller warrants that the BoxHouse shall be free from defects in materials and workmanship for a period of one (1) year from the date of delivery. Purchaser must notify Seller in writing of any warranty claims within such period. This warranty does not cover damages caused by misuse, unauthorized modifications, or acts of nature.

7. Representations and Warranties

a. Seller represents that it is the lawful owner of the Unit, has the right to sell it, and that the Unit conforms to Seller's published specifications.
b. Purchaser represents that it is duly organized and authorized to enter into this Agreement, and that it is acquiring the Unit for use in a bona fide business venture.

8. Indemnification

a. Scope. Seller shall indemnify, defend, and hold harmless Purchaser from and against claims or costs including reasonable attorneys.
    i. defects in the design or manufacture of the BoxHouse;
    ii. bodily injury or property damage caused by such defects;
    iii. any recall or corrective action involving the BoxHouse;
    iv. infringement of a third party's intellectual property rights; or
    v. any IRS or other taxing-authority examination, inquiry, or challenge specifically concerning the purchase price or valuation of the BoxHouse, the unit's eligibility for bonus depreciation, or the treatment of the Effective Date as the placed-in-service date for up to the net amount that Purchaser paid for the unit.
    vi. Purchaser shall surrender ownership of the unit upon making a claim under this provision.

9. Guarantee Reference

a. Purchaser acknowledges that the obligations under the Note are further supported by a Debt Guarantee Agreement executed by _____, for the benefit of Seller.

10. Default and Remedies

a. If Purchaser fails to make payment or otherwise defaults under this Agreement, the Note, or the Security Agreement, Seller may exercise all rights available under the Uniform Commercial Code, including repossession of the BoxHouse. Remedies are cumulative.

11. Miscellaneous

a. Governing Law. This Agreement shall be governed by and construed under the laws of the State of Delaware, without regard to conflicts of laws
b. Entire Agreement. This Agreement, together with the Note, Security Agreement, Guarantee, and related documents, constitutes the entire agreement between the Parties regarding the BoxHouse.
c. Assignment. Purchaser may not assign its rights or obligations without prior written consent of Seller.
d. Nature of Asset. The Parties agree that the BoxHouse is personal property, not real estate.

12. Execution

a. Executed as of the Effective Date first above written.

IN WITNESS WHEREOF, the parties hereto have executed this Acknowledgment as of the date first above written.

Executed as of _____

Seller: BoxHouse Finance LLC

Signature: _____

Name: _____

Title: _____

Purchaser: _____

Signature: _____

Name: _____

Title: Manager

Promissory Note

Principle Amount: $_____

Date: _____

Maturity Date: _____

1. Promise to Pay

a. FOR VALUE RECEIVED, _____, a Delaware protected series limited liability company ("Borrower"), promises to pay to the order of BoxHouse Finance LLC ("Lender") the principal sum of $_____(the "Principal Amount"), together with interest thereon as provided below.

2. Interest

a. Interest shall accrue on the unpaid Principal Amount at the Applicable Federal Rate (mid-term, compounded annually) in effect on the Date hereof, currently % per annum (the "Interest Rate").
b. Interest shall be due at least annually on December 31 of each year (Qualified Stated Interest).
c. If unpaid, such interest shall be added to principal ("Capitalized Interest") and shall itself bear interest at the Interest Rate. Capitalization shall not constitute default.

3. Payment Schedule

a. Deferral Period. No payments of principal or interest shall be required until January 15, 2028.
b. Interest-Only Payments. Beginning January 15, 2028, Borrower shall pay interest only on the outstanding principal balance, on a monthly basis.
c. Balloon Payment. On the Maturity Date, Borrower shall pay the entire outstanding principal balance, plus any accrued but unpaid interest, in full.

4. Application of Payments

a. Each payment shall be applied first to accrued but unpaid interest, then to any other charges due under this Note.

5. Security

a. This Note is secured by a Security Agreement of even date herewith granting Lender a first-priority security interest in the BoxHouse unit identified by serial number _____.

6. Guarantee

a. This Note is further supported by a Debt Guarantee Agreement executed by the _____, for the benefit of Lender.

7. Default

a. Events of Default include:
   i. Borrower fails to make any required payment when due (after a 30-day cure period), except as provided for under section 2(c) of this agreement. Capitalization of interest does not constitute default;
   ii. Borrower becomes insolvent or files for bankruptcy;
   iii. Borrower materially breaches the Purchase Agreement, this Note, or the Security Agreement.
b. Upon default, Lender may declare the entire unpaid balance immediately due and exercise all rights of a secured party under the UCC, including repossession.
c. Any disposition of the BoxHouse unit following an Event of Default shall be conducted in a commercially reasonable manner consistent with Article 9 of the Uniform Commercial Code, and net proceeds of such disposition (after reasonable costs of sale) shall be applied to permanently reduce the Obligations owed by Borrower and, correspondingly, Guarantor's exposure under the Debt Guarantee Agreement.

8. Prepayment

a. Borrower may prepay principal and/or interest at any time without penalty.

9. Installment Sale Reporting

a. The Parties intend that this Note qualify for installment sale treatment under §453 of the Internal Revenue Code. Borrower acknowledges that Lender shall report gain under the installment method to the extent permitted by law.

10. Miscellaneous

a. Governing Law: Delaware law governs this Note.
b. Amendments: Must be in writing and signed by both Borrower and Lender.
c. Assignment: Borrower may not assign without Lender's consent.

11. Execution

a. Executed as of the Effective Date written below.

IN WITNESS WHEREOF, the parties hereto have executed this Acknowledgment as of the date written below.

Executed as of _____

Lender: BoxHouse Finance LLC

Signature: _____

Name: _____

Title: _____

Borrower: _____

Signature: _____

Name: _____

Title: Manager

Security Agreement

This Security Agreement ("Agreement") is made as of _____, by and between: Debtor: _____, a Delaware protected series limited liability company ("Debtor"), and Secured Party: BoxHouse Finance LLC ("Secured Party").

1. Grant of Security Interest

a. To secure the prompt payment and performance of all obligations of Debtor under that certain Promissory Note of even date herewith (the "Note") and the related Purchase Agreement (together, the "Obligations"), Debtor hereby grants to Secured Party a first-priority security interest in the following collateral (the "Collateral"):
   i. One BoxHouse unit, Model _____, Serial Number _____, together with all attachments, accessions, replacements, and proceeds thereof.

2. Perfection

a. Debtor authorizes Secured Party to file one or more UCC-1 financing statements or similar instruments in any appropriate jurisdiction to perfect and maintain Secured Party's interest in the Collateral.

3. Debtor Covenants

a. Debtor agrees:
   i. to maintain the Collateral in good condition, ordinary wear and tear excepted;
   ii. not to sell, lease, transfer, or encumber the Collateral without Secured Party's prior written consent;
   iii. to permit Secured Party to inspect the Collateral upon reasonable notice;
   iv. to maintain the Collateral free of liens other than Secured Party's security interest.

4. Default

a. Upon the occurrence of an Event of Default under the Note or Purchase Agreement, Secured Party shall have all rights and remedies of a secured party under the Uniform Commercial Code, including repossession and sale of the Collateral, in addition to any other remedies available at law or in equity. Any disposition of the BoxHouse unit following an Event of Default shall be

conducted in a commercially reasonable manner consistent with Article 9 of the Uniform Commercial Code, and net proceeds of such disposition (after reasonable costs of sale) shall be applied to permanently reduce the Obligations owed by Borrower and, correspondingly, Guarantor's exposure under the Debt Guarantee Agreement.

5. Miscellaneous

a. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to conflicts of laws.
b. Binding Effect. This Agreement shall be binding upon Debtor and its successors and assigns, and shall insure to the benefit of Secured Party and its successors and assigns.
c. Integration. This Agreement, together with the Note and Purchase Agreement, constitutes the entire agreement between the Parties with respect to the Collateral.

6. Execution

IN WITNESS WHEREOF, the parties hereto have executed this Acknowledgment as of the date written below.

Executed as of _____

Secured Party: BoxHouse Finance LLC

Signature: _____

Name: _____

Title: _____

Debtor: _____

Signature: _____

Name: _____

Title: Manager

Debt Guarantee Agreement

This DEBT GUARANTEE AGREEMENT ("Agreement") is entered into as of _____, by and between:
_____("Guarantor"), a grantor trust established by _____(Grantor) under that certain Declaration of Trust dated _____, with _____as Trustee; and BoxHouse Finance LLC ("Lender").

1. Guarantee of Obligations

a. The Guarantor hereby absolutely and unconditionally guarantees to the Lender the prompt payment and performance of all obligations of _____("Borrower" or "Series") under that certain Promissory Note dated _____in the principal amount of $_____, together with all interest, fees, costs, and expenses payable thereunder (collectively, the "Obligations").
b. Notwithstanding the foregoing, the Guarantor's liability hereunder shall in no event exceed an amount equal to the then-outstanding principal under the Promissory Note, together with accrued but unpaid interest thereon, and reasonable, documented out-of-pocket collection costs, and shall expressly exclude any consequential, punitive, or speculative damages.

2. Nature of Guarantee

a. This is a continuing, irrevocable, absolute, and unconditional guarantee of payment and performance, not of collection. The Lender shall use commercially reasonable efforts to first pursue remedies against the Borrower and any collateral securing the Obligations; provided, however, that failure to do so shall not be a defense to enforcement of this Guarantee.

3. Waivers

a. The Guarantor waives:
    i. Notice of acceptance of this Guarantee, presentment, demand, protest, or notice of default;
    ii. Any defense arising from the extension, renewal, modification, or release of the Obligations;
    iii. Any right to require Lender to proceed first against Borrower or collateral.

4. Termination

a. This Guarantee shall remain in effect until all Obligations are paid in full and the Lender has released Borrower from liability under the Promissory Note.Termination of the Borrower's interest in the BoxHouse unit (including abandonment of its Series membership) shall not affect Guarantor's obligations until the Note is satisfied or released; provided that (i) upon any sale or other disposition of the BoxHouse unit, the net proceeds (after reasonable costs of sale) shall be applied to permanently reduce the Obligations, and (ii) upon full payment of the Obligations or a refinancing that fully repays the Note, the Lender shall promptly deliver to Guarantor a written release of this Guarantee.

5. Trustee Authority

a. The Co-Trustees of the Guarantor Trust are expressly authorized under the Declaration of Trust to execute this Guarantee on behalf of the Guarantor.

6. Binding Effect

a. This Agreement shall be binding upon the Guarantor, its successors and assigns, and shall insure to the benefit of the Lender and its successors and assigns.

7. Governing Law

a. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

Signatures on following page

IN WITNESS WHEREOF, the parties hereto have executed this Debt Guarantee Agreement as of the date first above written.

Guarantor: _____

By:_____,

Trustee Signature: _____

Name: _____

Title: Manager

Lender: BoxHouse Finance LLC

Signature: _____

Name: _____

Title: _____

Buyer Disclosure and Acknowledgement

For convenience, this Disclosure and other documents related to this transaction refer to the undersigned as the "Buyer," although the Buyer's role is as Settlor and Beneficiary of the Trust, not the direct purchaser of the BoxHouse unit.

1. Trust / Series Structure

a. Buyer acknowledges that:
   i. Buyer's down payment has been contributed to a Grantor Trust, of which Buyer is both Settlor and Beneficiary.
   ii. The Trust has purchased a membership interest in a Series LLC, which in turn has purchased the BoxHouse unit.
   iii. Buyer's interest is limited to beneficial rights in the Trust; Buyer does not hold direct title to the BoxHouse unit.

2. Economic Substance

a. The purpose of this structure is to establish and operate an ongoing business with potential revenue through managed services and unit availability, including the active management, marketing, and leasing of the BoxHouse unit. Tax benefits (e.g., bonus depreciation) may be available but are not the primary or sole purpose of the structure, and no specific tax outcome is being promised..

3. Risks and At-Risk Rules

a. Buyer understands and agrees that:
   i. Buyer is at risk for the amount contributed to the Trust and for obligations guaranteed by the Trust.
   ii. Buyer may be subject to recapture of depreciation upon disposition of the BoxHouse unit.
   iii. Buyer may be allocated income from cancellation of debt (CODI) if obligations are discharged.
   iv. Future operating expenses of the Series (including management fees) will reduce distributable cash flow.
   v. Neither BoxHouse, Parent LLC (as defined below), nor Highland Steel guarantees any minimum profit, revenue, or tax outcome.
   vi. Neither BoxHouse, Parent LLC, nor Highland Steel is providing individualized tax, legal, or accounting advice, and that Buyer is relying on Buyer's own

independent advisors with respect to the availability and use of any deductions or losses.

4. No Guarantee of Results

a. Buyer acknowledges that:
   i. ReadyPod or other service arrangements may provide operating revenues, but such revenues depend on third-party demand and are not guaranteed.
   ii. Neither Seller nor Parent LLC has promised or represented that Buyer will achieve any particular tax treatment or financial outcome.

5. Independent Review

a. Buyer affirms that:
   i. Buyer has had the opportunity to consult with independent legal, tax, and financial advisors of their own choosing.
   ii. Buyer has not relied on any oral or written statement, illustration, or projection by BoxHouse, Highland Steel, Parent LLC, or their affiliates as a guarantee of any particular tax treatment, internal rate of return, or financial outcome.

Definitions:

For purposes of this Disclosure, _____ is referred to herein as the “Parent LLC.”

Buyer Acknowledgment

By signing below, Buyer acknowledges having read and understood this Disclosure, and agrees that Buyer’s participation is subject to the risks and terms described herein.

Buyer

Signature: _____

Name: _____

Date: _____

Funds Flow Statement & Buyer Acknowledgment

_____("Buyer")
_____("Model")
_____("Serial #")

Total Buyer Payment

- Down Payment: $_____
- Administrative Fee: $_____
- Total Wire Amount (to BoxHouse account): $_____

Buyer agrees to wire the total above to the BoxHouse bank account per provided wire instructions, including reference to the **unit serial number in the memo field**.

Allocation of Funds

- Down Payment: Applied toward Buyer's Trust contribution and the purchase of the BoxHouse unit. Buyer acknowledges that the Down Payment is intended to constitute Buyer's at-risk capital with respect to the Trust's and Series' investment in the BoxHouse unit, subject to applicable tax rules and Buyer's own tax position.
- Administrative Fee: Applied toward Series bookkeeping, tax preparation, and management services (2 years prepaid).
- Total: $_____

Notes to Buyer

- Funds are allocated internally per the operating agreements; Buyer's only obligation is to remit the total wire amount shown.
- BoxHouse and/or its authorized distributor(s) may pay commissions or related selling costs out of the Down Payment. These payments are the responsibility of Seller and do not reduce Buyer's beneficial ownership or increase Buyer's obligations. Such payments shall not reduce the Trust's or Series' capital account attributable to Buyer's Down Payment.
- The Administrative Fee is a fixed per-unit charge, uniform across all models.
- This allocation does not alter Buyer's beneficial rights under the Trust, nor Buyer's at-risk status regarding the Down Payment and obligations guaranteed by the Trust.
- Buyer shall receive, on at least an annual basis, a statement showing (i) the balance of the Promissory Note, (ii) payments made thereunder during the prior

year, and (iii) the allocation of revenues and expenses of the Series related to the BoxHouse unit.

Buyer Acknowledgment

I, the undersigned Buyer, acknowledge having reviewed this Funds Flow Statement and understand how my payment is allocated.

Buyer

Signature: _____

Name: _____

Date: _____

ReadyPod Series Addendum

Addendum No. _____to Master Services Agreement (“MSA”) dated_____ between ReadyPod and _____(“Parent”).

Entered into as of _____by Parent, as Manager of _____(the 'Series'). Pursuant to the MSA, this Addendum adds the Series and Unit listed below in Section 2 to the MSA.

1. Incorporation of MSA

a. All terms of the MSA apply to this Addendum.

2. Series and Unit

a. Series _____
b. Unit: _____
c. Serial Number: _____

3. Revenues Under MSA

a. Deployment Revenue: An allocation to the Unit of 80% of ReadyPod net operating profit earned from actual deployments of all Units under the MSA, to be allocated pro rata among all Units available.
b. ReadyPod is not obligated to make separate payments to each Series under the MSA. A single monthly payment to Parent for the total owed to all Series under the MSA shall be paid; it is the Parent's responsibility to then properly allocate the revenue among Series under the MSA.

4. Duration

a. Effective until Series ceases to own the Unit or Addendum terminated under MSA.

5. Separate Obligations

a. This Series' obligations are separate. There is no pooling of obligations or cross-liability with other Series that are or become party to the MSA via their own Addenda.

6. Storage and Other Costs Under the MSA

a. Storage and other costs related to Unit when not deployed shall be paid by ReadyPod as incurred and deducted as an operating cost from any allocation of Deployment Revenue due under the MSA as a component of net operating profit.

Executed as of _____

By:_____

Signature: _____

Name: _____

Title: Manager